

LAW OF EVIDENCE CLASS NOTES
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INTRODUCTION

Why study the law of evidence?

- To enable a legal advisor to prepare for a case and advise on the claim.
- It enables a prosecutor to determine if s/he can charge someone for an offence.
- It enables a judge to give a ruling or order which is supported by the relevant evidence.
- A litigant relies on evidence to prosecute or defend a case.
- A law student needs to pass evidence as a core subject in order to be called to the Bar.
- People can only pursue their rights in court only when they have evidence

Learning Methodology

- Meaning or definition, concept
- Rationale i.e. philosophy behind the topic
- Drawbacks or disadvantages
- Evidence embedded in constitution and statutory provisions in order to link evidence with them where applicable.
- General principles and codified principles
- Exceptions and their effect (of rendering the general principle inapplicable to the facts of a specific case)
- Exceptions to exceptions which render the general principle applicable – effect **R v Gilfoyl** (1996) 1 CR App Rep 302: *Man charged with murder of wife and his defence was that wife committed suicide. Friends of wife testified that wife used to tell them that her husband was practising how to write suicide notes with her and being more educated, she was helping him to draft the notes. He claimed the notes were required for promotion for work. During trial, man relied on some of the notes in wife's handwriting as evidence that wife committed suicide. Statements from friends were hearsay and inadmissible but due to credibility attached by court to their evidence, the court accepted hearsay as evidence. Thus exception to hearsay rule was used to get the man convicted.*
- Special or peculiar cases e.g. **Duah v The Rep** [1987-88] 1 GLR 343, CA: *Dua was living in Europe and married a doctor in Korle-Bu. They had a child. Her parents objected to marriage to a borgia. During a visit from the man, the wife died of knife wounds in her room. Borgia went to Kuku Hill from the Doctors' flat in K'bu to tell his own uncle "meku Aggie!" His lawyers tried to say that what he said was "Adi ewu" but it wasn't accepted. He claimed that due to objection of parents, they both decided to kill themselves but when his wife stabbed herself, he got scared and*

decided to not kill himself. The statement he gave to his uncle was used to convict him because it was a free voluntary statement of his own understanding of what he had done (confession).

- Supporting authorities required for all answers i.e. constitutional or statutory provisions and decided cases.
- Where Ghana law differs from common law, the difference must be identified and if possible state them in answers where they are relevant.
- Preference for Ghana law.
- Hierarchy of statutes must be considered when statutes are being cited.
- If there are many cases on a particular principle, hierarchy of courts must be used in citing them.

BASIC CONCEPTS

Definition of Evidence

- Evidence is that which tends to prove or disprove a fact, or ground for belief.
- Black's Law Dictionary¹: “*something including testimony, docs and tangible objects that tends to prove or disprove the existence of an alleged fact*”.
- Phipson on Evidence: “*in a real sense evidence is that which may be placed before the court in order that it may decide the issues of fact*”.
- **S179, NRCD 323**: evidence is “*testimony, writings, material objects or other things presented to the senses² that are offered to prove the existence or non-existence of a fact*”.
- Evidence comprises rules and principles that govern the proof to convince the court of the merits of one's case.

Other Concepts

- Character evidence
- Material evidence
- Hearsay evidence
- Quantum of evidence
- Exclusion of evidence
- Best evidence rule
- Authentication
- Privilege
- Presumption
- Public policy

¹ Also “the collective mass of things, especially testimony and exhibits presented before a tribunal in a given dispute”
“Demonstration of a fact; it signifies that which demonstrates, makes clear, or ascertains the truth of the very fact or point in issue, either on the one side or on the other”.

² Evidence which can be heard, smelled, seen, touched, tasted?

SCOPE OF THE LAW OF EVIDENCE

1. Universality or intrusive application: no case can go on in court without evidence.
2. Universality and intrusive application.
3. The essential elements of evidence or 3 suppositions of evidence:
 - a. What type of evidence do you have?
 - b. How much evidence do you have?
 - c. What is the quality of evidence to be led?
4. Consequence: evidence cuts across almost all subjects.
5. Voire dire³: exclusionary evidence on confession.

³ Inter alia, preliminary examination to test the competence of evidence (BLD)

TYPES OF EVIDENCE

1. Real evidence

Physical evidence which itself plays a direct part in the incident in question (BLD) a.k.a. physical evidence. IOW evidence whose characteristics are directly material to the issue to be determined e.g. using guns as evidence in a murder charge. In *R v Ametewe* [assassination attempt on Nkrumah, transferred intent because bodyguard killed] real evidence was the gun used in the assassination attempt since only one gun was shot and the deceased died of gunshot wounds.

2. Testimonial evidence⁴

Oral evidence which comprises information given in court verbally by a party, the accused or a witness to prove the truth of the matter asserted. It may be on oath.

3. Demonstrative evidence

Physical evidence which one can see and inspect; *an explanatory aid usually offered to clarify testimony* (BLD). Information in the nature of illustration such as maps, building plans, pictures, site plans, etc.

4. Documentary evidence

Information in the form of writing on paper e.g. a written contract, wills, suicide note, certificates, affidavits. *Evidence supplied by writing or other document which must be authenticated before the evidence is admissible* (BLD).

5. Digital or electronic evidence

Information stored or transmitted in an electronic form for use in court proceedings e.g. emails, CDs, tapes.

Adjunct types of evidence include circumstantial evidence⁵ and traditionary evidence⁶.

General Terminologies

Substantive laws i.e. law which concerns the rights and duties of individuals, the state, corporate bodies, etc.

Procedural laws i.e. mechanism for applying substantive law to resolve disputes. It concerns the format by which claims or accusations are filed, processed, tried and adjudicated upon.

⁴ Video conferencing and TV links are currently considered as testimonial evidence

⁵ Evidence based on inference and not on personal knowledge or observation – Black's Law Dictionary

⁶ Evidence derived from a deceased person's former statements or reputation (BLD); it's admissible to prove ancestry, ancient boundaries or similar facts usually when no living person is available to testify.

October 10, 2013

SOURCES OF THE LAW OF EVIDENCE IN GHANA

Pre -1975

- All the old constitutions
- Statutes of Ghana/Gold Coast
- Cases decided by superior courts

Post – 1975

- Constitutional law
- Statutory law
- Judicial precedents
- Customary law
- Text book law
- Foreign laws

Constitutional Law

Includes all the past Constitutions i.e. 1979, 1969, 1960, 1957 because the 1992 Constitution is based on repeat provisions and interpretations of past provisions i.e. doctrine of stare decisis applies.

There are also several evidentiary rules in the 1992 constitution e.g. presumption of innocence in [Article 19\(2\)\(c\)](#), right to silence in [Article 19\(10\)](#) i.e. no person who is tried for a criminal offence shall be compelled to give evidence at the trial, and autrefois acquit and convict quote in [Article 19\(7\)](#).

Statutory Provisions

Evidence Decree⁷ was enacted in 1975 i.e. Evidence Act, 1975 (NRCD 323).

When the decree was first passed, it came along with a commentary and per the Interpretation Act, CA 9, it serves as an aid to construction.

Procedural statutes include

- Courts Act, 1993 (Act 459)
- Criminal Procedure Act, 1960 (Act 30)
- Children's Act, 1998 (Act 560)
- Juvenile Justice Act, 2003 (Act 653)
- Road Traffic Act, 2004 (Act 683)
- Interpretation Act, 2009 (Act 792)
- Supreme Court Rules, 1996 (CI 16)
- Court of Appeal Rules, 1997 (CI 19)
- High Court (Civil Procedure) Rules, 2004 (CI 47)

⁷ Changed from Decree to Act in 2004

- District Court Rules, 2009 (CI 59)
- CI 27 Chieftaincy (National & Regional House of Chiefs) Procedure Rules
- CI 798 Chieftaincy (Proceedings) Regulations, etc.

Statutes on substantive laws include

- Criminal Offences Act, 1960 (Act 29)
- Wills Act, 1971 (Act 360)
- PNDCL 111 [Intestate Succession Law], etc.

Hierarchy of statutory norms must be borne in mind and cited in order of authority i.e. Constitution, Act, Decrees, C.I., E.I., L.I.

Judicial Precedents

Decisions explaining or enunciating laws of evidence

Hierarchy of judicial norms – SC, CA, HC/RT, CC, DC, Judicial Committee of Regional/National House of Chiefs, Judicial Committee of Traditional Councils.

Customary Laws

Laws and regulations which govern customs, cultures and traditionalism. Generally there are substantive and procedural laws e.g. whether a chief has been properly installed is substantive customary law but to prove an issue arising out of that requires knowledge of the procedure for installation. Thus the procedure is determined by evidence on qualification for the position and the process of installation.

Text Book Laws

- Criminal Procedure in Ghana by A.N.E. Amisah, 1982 ED
- Ghana Law of Evidence by J P Fori Boateng, 2nd Ed (1976)
- Law of Evidence in Ghana, M. Opoku Agyeman
- Practice and Procedure in the Trial Courts and Tribunals of Ghana, S. A. Brobbey, 2nd Ed
- Annotated Criminal Procedure in Ghana, Mensa-Bonsu
- The Law of Interpretation in Ghana, 1995 Ed, by Dr. Bimpong Buta
- Civil Procedure, Kwami Tetteh
- The Law of Chieftaincy in Ghana 2008, S. A. Brobbey

Foreign Laws

Statutory and judicial laws from commonwealth or common law countries including USA, UK, Nigeria, Canada, Australia, India.

Application of the common law is supported by [Article 11⁸ of 1992 Constitution](#), and [s178\(3\)⁹ of NRCD 323](#). They are most useful when there are no Ghanaian authorities on the issues. It should be noted however that they are based on the context of the countries in which they apply so it's important to check for relevance.

⁸ Article 11(2) common law of Ghana shall comprise rules of law generally known as the common law...

⁹ *"Any rule which provides that acts in derogation of the common law shall be narrowly construed shall have no application in this decree"*

PROOF IN CIVIL PROCEEDINGS

The role of evidence in litigation is the ascertainment of truth by the medium of proof. The evidence is the method or means of putting information across to the court. Proof is however the effect of the evidence on the mind of the court and the conclusion that the court draws from the effect.

The objective of litigation is to convince the court to grant your claim by adducing evidence to support such claim¹⁰. The type of evidence to be adduced depends on the nature of the charge.

Evidence generally is considered from two angles:

- Findings of fact¹¹
- Findings of law¹²

Where the judge is sitting alone [NRCD 323, s2\(3\)](#)¹³ applies.

In Ghana, the appropriate terminologies are the burden of producing evidence and the burden of persuasion.

Burden of producing evidence

It is the obligation of a party to introduce sufficient evidence to avoid a ruling against that party¹⁴. Normally, the person to start the production of evidence is the one against whom a ruling will be given if no evidence is led – [NRCD 323, s17](#)¹⁵ and [s11\(1\)](#)¹⁶.

Other terminologies – evidential burden, burden of going forward, risk of non-production – may be found in [Sumaila Bielbiel \(No. 3\) v Adamu Dramani and Ano](#) [2012] SCGLR 370; the original jurisdiction of the SC was invoked for a declaration that on the true and proper interpretation of Art 97(1)(e) and Art. 94(2)(a), the respondent who holds a British passport and therefore owes allegiance to another country is acting in contravention of the Constitution for as long as he sits as MP + any consequential orders. R applied for the action to be struck out because it was an election petition disguised as a constitutional matter and was out of time; and even if it was not out of time, it should have been commenced by petition but the application was dismissed. The CA set aside the writ on the basis that it was an election petition. The jurisdiction of the SC was subsequently invoked. Respondents raised a preliminary objection to have the matter struck out for want of jurisdiction on the grounds that the matter was res judicata, having been heard and disposed of by the CA and since it didn't come to the SC by way of an appeal, the SC was usurping the powers of the CA. R also argued that to be properly within Art 130(1), the question before the court should involve interpretation of the Constitution. Held: the matter before the HC and CA was different in scope from what was before the SC. The facts urged by A were of a continuing nature like a nuisance and done in breach of the constitution; thus it's a new cause of action. Also, "and"

¹⁰ People go to court when they believe they have a legitimate claim against another person

¹¹ Determined by the jury s2(1) of NRCD 323

¹² Decided by the judge per s1(1) of NRCD 323

¹³ Where there is no jury, all questions of fact shall be decided by the court.

¹⁴ e.g. a prosecutor need not lead evidence to show that there was no self-defence, unless and until the accused raises that as a defence, in which case the BPE is on the accused

¹⁵ Except otherwise provided by law, the burden of producing evidence of a particular fact is on the party against whom a finding on that fact would be required in the absence of further evidence.

¹⁶ The burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue.

between the provisions which invoke the original jurisdiction of the SC is not meant to be inclusive but is used disjunctively. Thus the existence of any of the provisions invokes the court's jurisdiction – both don't have to be present at the same time.

Generally, he who asserts assumes the onus of proof but this is of limited application and subject to several exceptions. The burden is discharged at the end of the trial.

The burden of production is determined at the beginning of the trial. In [Faibi v State Hotels Corporation](#)¹⁷ a manager of one of the state hotels sued for damages for unlawful dismissal. The claim was based on the fact that the corporation had dismissed him wrongfully. He was accused of having received contraband goods in his hotel and was charged by controller of customs at the DC and acquitted. Despite the acquittal, he was dismissed by the company because receiving contraband goods was contrary to the hotel's policy. The court held that since the party who would lose was the plaintiff if no evidence was adduced, the burden was on the plaintiff.

If evidence is peculiarly within the knowledge of a party and that party would not produce it, the inference of law is that the evidence is against him – per Ollennu J.A.

[Total Ghana Ltd v Thompson](#) [2011] SCGLR 458 the SC held that since Total had written the suspension letter, the burden of producing evidence lay on it to prove that the allegation on which the suspension was based was true.

The burden of production depends on the ff:

- the nature of the evidence
- the type of case
- the position of the defendant
- the consequence of inaction

If the plaintiff is able to prove his claim and there is no counterclaim, the defendant will lose.

The position of the defendant was summarized by the SC in [Barima Gyamfi v Ama Badu](#) [1963] 2 GLR 596 as follows “*in a claim made by a plaintiff, there is no onus on the defendant to disprove the claim so that however unsatisfactory or conflicting the defendant's evidence may be, it cannot avail the plaintiff. The evidence of the defence only becomes important if it can upset the balance of probabilities which the plaintiff's evidence might have created in the plaintiff's favour or if it tends to corroborate the plaintiff's evidence or tends to show that evidence led on behalf of the plaintiff is true*”.

Burden of Persuasion

It's the burden to convince the court that the existence of a fact is more probable than its non-existence¹⁸. The burden of persuasion may also *require a party to raise reasonable doubt concerning the existence or*

¹⁷ [1968] GLR 471

¹⁸ NRCDC 323, s10; the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the court.

*non-existence of a fact, or that he establish the existence or non-existence of a fact by a preponderance of probabilities or by proof beyond a reasonable doubt*¹⁹

The burden of persuasion is normally determined at the end of the case. The onus is on each party.

Other terminologies are legal burden, the persuasive burden, the risk of non-persuasion.

The burden of persuasion emphasises the standard of proof.

Standard of Proof²⁰

There are 3 standards in Ghana:

1. Proof on the balance of probabilities or by preponderance of probabilities²¹
2. Proof beyond reasonable doubt²²
3. Proof by reasonable doubt²³

In civil matters, proof is based on the balance of probabilities or the preponderance of probabilities.

Per **NRCD 323, s12(2)**, preponderance of probabilities refers to the degree of certainty of belief in the mind of the tribunal of fact or the court by which it is convinced that the existence of a fact is more probable than its non-existence.

Preponderance of probabilities means the issue at stake is more probable/likely than not; existence of fact is more probable than its non-existence; fact is more likely to be true than to be untrue.

The balance of probabilities means that, considered in the light of all the facts, one party had established the truth with more than 50% of the evidence. Thus evidence adduced must tilt the balance more to one side in order to discharge the burden. Where more than 50% of the evidence is established, the standard of proof is achieved.

The exception to this rule is that, **where a criminal allegation is made in a civil proceeding, provided that allegation is in issue, the standard of proof is beyond reasonable doubt – NRCD 323, s13(1)**²⁴. Proof beyond reasonable doubt is a higher standard than proof on the balance of probabilities.

See:

Sasu Bamfo v Sintim [2012] 1 SCGLR 136 B instituted the action for inter alia declaration of title to land and recovery of possession. His case was that the land was granted to him by the deceased head of the Neefu Family in 1990. The indenture was signed in 1990 but the oath of proof was dated August 1996. The document was not registered. PW1 testified that he was present when the document was made. B claimed he constructed a wall around the property thus S had notice of his ownership but had disregarded

¹⁹ NRCD 323, s10(2)

²⁰ S10(2)

²¹ Mainly used in civil cases

²² Used in criminal cases

²³ Proof required of the accused when s/he has to make a defence

²⁴ In any civil or criminal action, the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt

it and started construction on the land. S argued that Ex “A” was a forgery because the head of family died in 1993 and could not have been present when the registrar signed the oath of proof. He also contended that there was no wall on the property when he went into occupation. He counterclaimed for a declaration of title, producing a lease granted in 2005 and registered at the lands registry to support his claim. The trial court gave judgment in favour of B. On appeal, the decision was reversed. B brought the instant appeal to the SC which held that:

1. Although the Respondent failed to prove any of the particulars of the forgery/fraud as pleaded, if after evaluating and scrutinising the whole of the evidence including documents exhibited, there was evidence of fraud, the appellate court which could draw its own inference from the evidence and was in that regard in the same position as the trial court, rightly found that the indenture was fraudulent.
2. PW1 never signed nor thumb printed the Oath of proof as a Deponent even though the Chief Registrar had signed as the Oath having been sworn before him. The finding of the CA that P. W. 1 perjured himself is not supportable and therefore the CA erred when it so held.
3. Since Ex “A” is not a registered Instrument there is no issue of priorities of the respective titles of the parties which the Court of Appeal failed to consider.

Fenuku v John Teye [2001-2002] SCGLR 985 alleged forgery should have been established on proof beyond reasonable doubt.

October 22, 2013

PROOF IN CRIMINAL PROCEEDINGS

Per **Art 19(2)(c)** a person charged with an offence shall be presumed innocent until s/he is proved or has pleaded guilty. The effect of this constitutional provision is that the onus of proof is on the prosecution. This is primarily because it's the prosecution which is asserting and must thus prove.

Woolmington v DPP [1935] AC 462 at p.481 the HL said...“*throughout the web of the English criminal law one golden thread is always to be seen, that is the duty of the prosecution to prove the prisoner's guilt subject to what I have already said as to the defence...*”

Burden of Producing Evidence

Burden of proof in criminal law is the responsibility of the prosecution to adduce sufficient evidence in support of the charge to induce the judge not to withdraw the case or to dismiss it.

Standards of Proof

There are 3 standards:

1. Proof beyond reasonable doubt

In NRCD 323, it's found in 3 sections; ss11(2)²⁵, 13(1)²⁶ and 22²⁷.

Proof beyond reasonable doubt doesn't mean there should be no doubt whatsoever. It means that by the end of the case, the prosecution must prove or disprove every element of the offence but not necessarily all the facts in the charge and disprove any defence raised. It also means that at the end of the trial no reasonable explanation should be possible on the facts except that the offence was committed and it was the accused who committed it.

The standard required is that proof must make the jury almost certain of the conviction of the accused. Proof must make the facts more probably true than not.

Certainty is not required in proof but a high degree of probability is. It's also not proof beyond every shadow of doubt. However, it's not proof on the balance of probabilities either. *Oteng v The State* [1966] GLR 352 at 354, SC is authority for the proposition that a conviction cannot be secured on a balance of probabilities²⁸. In that case, the accused was charged with careless driving and negligently causing harm. An accident had occurred when he was overtaking a scooter with 2 passengers who both died as a result of the crash. There were 2 possibilities of the cause of the accident: (1) accused suddenly swerving to the left when he had only half passed the scooter, or (2) by the scooter swerving to the right when the car had half overtaken him. The trial judge thought that the first scenario was more probable and convicted him and his decision was upheld by the HC on appeal. A further appeal to the SC was granted on the ground that the prosecution had failed to discharge its evidentiary duty by not establishing his guilt beyond reasonable doubt.

Proof beyond reasonable doubt is the highest of all proof because criminal proceedings deal with life and death. To a lesser degree, it may lead to loss of property, and it may also lead to loss of liberty.

The philosophy behind this standard of proof is the English maxim "*better ten guilty men should escape rather than one innocent man suffer*".

The ramifications of this principle are in the ff cases:

R v Adamu [1960] GLR 91, 95 A was charged with attempted abortion. His evidence, which was consistent with PW1's was that he gave her the medicine to abate stomach ache and not to cause abortion. The police tendered a statement in which A was alleged to have confessed to giving the medicine to the girl with intent to cause abortion but the statement was not made in the presence of any independent witnesses. The trial court directed the assessors that if they accepted and believed the accused's evidence they should state their opinion as Not Guilty, and if they believed the evidence of the prosecution then their opinion should be stated as Guilty. The assessors found him guilty and the judge accepted the verdict.

²⁵ NRCD 323, s11(2): In a criminal action the burden of producing evidence, when it is on the prosecution as to any fact which is essential to guilt, requires the prosecution to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact beyond a reasonable doubt

²⁶ NRCD 323, s13(1): In any civil or criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt

²⁷ NRCD 323, s22: In a criminal action a presumption operates against the accused as to a fact which is essential to guilt only if the existence of the basic facts that give rise to the presumption are found or otherwise established beyond a reasonable doubt, and thereupon, in the case of a rebuttable presumption, the accused need only raise a reasonable doubt as to the existence of the presumed fact.

²⁸ Per Ollennu JSC "one significant respect in which our criminal law differs from our civil law is that while in civil law a plaintiff may win on balance of probabilities, in a criminal case the prosecution cannot obtain convictions upon mere probabilities. Even in a civil case where the probabilities are equal, i.e. the case for the plaintiff is as probable as that for the defence, the plaintiff must fail."

On appeal, held inter alia, “the invitation to find the appellant guilty on the simple basis of “accepting and believing the evidence of the prosecution”, involves finding him guilty upon the evidence of P.W.1, who deposed only to facts which were from beginning to end consistent only with his innocence, and which could not on the face of them be supposed to incriminate him. Even if they were not positively exculpatory, they at least introduced a doubt. We find it impossible to understand how it can be thought right to say in effect to a jury, or to one's self: “If you accept the evidence of the prosecution (which contains the seeds of its own destruction in the doubt introduced by a part of it) then you should find the accused guilty.” Appeal allowed.

Mali v The State [1965] GLR 710

Appellant was charged jointly with another on one count of unlawful entry and 5 counts of stealing different sums of money. A2 was acquitted of all 6 counts but A was convicted. A claimed he and A2 found the room, where money was kept by a number of people including him, had been broken into, he thus took his money which was in a bag marked Exhibit A, gave it to A2 and both went to report the incident to the complainant. A witness also claimed he saw A2 carrying the money. Complainant claimed the amount of money taken by A1 was the exact amount that was missing. He was thus arrested. After the case for the defence had closed, the judge suo motu, and in exercise of his powers under s119 of Act 30 called A2 to give evidence in the case, and the witness confirmed every material fact deposed to by the appellant in his evidence. A was however convicted. On appeal against conviction, Ollennu JSC held that – if evidence led on behalf of the defence makes the court require an independent witness or further evidence to enable it to decide the issues raised in the evidence given by the prosecution, the irresistible inference is that the evidence led on behalf of the defence has created a reasonable doubt in the mind of the court. In that situation the court is under a legal duty to acquit. Appeal allowed.

R v Djomoh [1960] GLR 193 D was charged with and convicted of child stealing. On appeal, CA quashed the conviction on the following grounds:

- a. a finding that an accused person has told lies in his own defence, does not absolve the prosecution from the duty of affirmatively proving the prisoner's guilt beyond reasonable doubt;
- b. a judicial direction is insufficient if it does no more than say, “If you accept the prosecution evidence, find the prisoner guilty; if you accept the prisoner's evidence, or if you are in doubt, find him not guilty”;
- c. a confession of “having done wrong” accompanied by an apology, does not necessarily amount to a confession that a crime has been committed;
- d. where the evidence against the prisoner is circumstantial the question upon which the trial judge must direct himself and the assessors (or jury) is, “do the circumstances point necessarily to the prisoner's guilt, and to no other logical conclusion?”

If there is doubt, the doubt must be reasonable and not fanciful.

The time to assess reasonable doubt is at the end of the entire trial. This is the correct position of the law as held in **Tsatsu Tsikata v The Rep** [2003-2005] 2 GLR 294 (holding 5) confirming the decision in **State v Sowah and Essel** [1961] GLR 743²⁹ (holding 1) accused persons were charged with

²⁹ To say that before the jury can consider the case for the defence, they must be satisfied that the prosecution has affirmatively proved its case means no more than to emphasise the general rule laid down by the maxim *ei qui affirmat non ei qui negat incumbit probatio* and the words “satisfied” and “affirmatively” have no reference to proof beyond reasonable doubt which stage can only be reached after considering the case for the defence.

unlawful entry and stealing. They were both seen in the premises of the complainant and shortly thereafter it was found that the complainant's door had been broken down and some items stolen. The items were not found on their person though. At the end of the case, the trial judge said that "*I am satisfied beyond reasonable doubt that the accused entered the room of PW 1 by breaking open the lock and stole the items specified in the second count despite the fact that none of these articles were found*". He followed it with "*I was so satisfied before the accused gave evidence*". Accused persons were convicted. Held inter alia, the summing up gives the impression that the learned trial judge prejudged the guilt of the accused persons before he heard them; it is wrong to presume the guilt of the accused merely from the facts proved by the prosecution.

There is another school of thought that reasonable doubt should be proved at the end of the case of the prosecution. This was the holding in *Amaning alias Tagor and Ano v Republic*, CA and is not good law.

Per s11(3) when the burden of producing evidence is on the accused he need only produce sufficient evidence so that on all the evidence, a reasonable mind could have a reasonable doubt as to guilt.

In s13(2) the law requires that the accused only needs to raise a reasonable doubt as to guilt. In *COP v Antwi* [1961] GLR 408 this principle was espoused: burden of proof remains throughout on the prosecution and it shifts only if at the end of the case of the prosecution and an explanation of circumstances peculiarly within the knowledge of the accused is called for because the accused it not required to prove anything.

The general rule is that the accused had no obligation to prove his defence or establish his innocence. From the get go, the accused person is presumed innocent. There are however two main exceptions to the general rule;

- a. S14 when the burden of persuasion shifts as to facts the existence or non-existence of which are essential to the claim or defence being asserted.

Law (statutory or case law) can also provide for the person who bears the burden. Case law may be couched in such a way that the burden will be placed on the accused to prove his innocence e.g. Act 29, s165³⁰, s206³¹, s162³². These are often expressed as exceptions, exemptions, excuses but proof shall always lie on the accused.

- b. Special verdict in cases of insane persons.

Where the accused person uses the defence of insanity, the onus of proof shifts to the accused as provided in Act 29, s27³³.

³⁰ Act 29, s165: Whoever without lawful excuse, the proof whereof shall lie on him, has in his possession any instrument or thing specially contrived or adapted for purposes of forgery shall be guilty of a misdemeanour.

³¹ Act 29, s206(1): Any person who, without lawful authority the proof whereof shall lie on him, has with him in any public place any offensive weapon shall be guilty of a misdemeanour.

³² Act 29, s162(g): Whoever knowingly and without lawful excuse (the proof whereof shall lie upon him) has in his possession any stamp or part of a stamp which has been fraudulently cut, torn, or otherwise removed from any material, or any stamp which has been fraudulently mutilated, or any stamped material out of which any name, sum, date, or other matter or thing has been fraudulently erased, or otherwise either really or apparently removed, shall be liable to a fine not exceeding ₦1 million

³³ Act 29, s27: When a person is accused of crime, the special verdict provided by the Criminal Procedure Code in the case of insanity shall only be applicable—

Dogo Dagarti v The State [1964] GLR 653; husband alleged that he killed his wife during an epileptic fit but was found guilty by a jury and was convicted. On appeal, the SC held inter alia that where a defendant pleads that the act complained of was done in a state of automatism he should be able to show some evidence which could be put to the jury and from which the jury could reasonably infer that the act was done in a state of automatism. But the question whether there is or is not such evidence is one for the judge. Where the judge decides that there is no such evidence, no need arises for him to direct the jury on that defence. In this case, no such evidence was adduced and mere allegation of automatism by the accused was insufficient to prove it.

Ketsiawah v The State [1965] GLR 483; husband killed his wife and claimed he did not know what he was doing as he was intoxicated. He was found guilty of murder and sentenced to death. On appeal, the SC held inter alia that where intoxication is self-inflicted, the onus of proof is on the accused to show that it rendered him temporarily insane. The standard of proof applicable to this onus is one of reasonable probability and this standard is not discharged by bare evidence of the consumption of liquor. On the evidence, the accused had not discharged this onus.

NRCD 323, s15(3) provides for the defence of mental incapacity and is to the effect that “*unless and until it is shifted, the party claiming that any person, including himself, is or was insane or of unsound mind has the burden of persuasion on that issue*”. The burden is discharged on a preponderance of probabilities.

2. Proof by reasonable doubt

In **Oteng v The State**, the accused person raised a reasonable doubt as to his culpability which led the SC to quash his conviction.

3. Proof on balance of probabilities

In all cases of diminished responsibility, standard of proof is on the balance of probabilities

Asare v The Rep [1978] GLR 193

Dabala v The State [1963] 2 GLR 14

Collins alias Derby v The Rep [1987-88] GLR 521, CA

(a) if he was prevented, by reason of idiocy, imbecility, or any mental derangement or disease affecting the mind, from knowing the nature or consequences of the act in respect of which he is accused; or
(b) if he did the act in respect of which he is accused under the influence of an insane delusion of such a nature as to render him, in the opinion of the jury or of the Court, an unfit subject for punishment of any kind in respect of such act.

COMMON ELEMENTS IN PROOF

Preliminary facts

Preliminary Facts³⁴ may also be facts in issue as provided for in **NRCD 323, s4**. Preliminary facts are matters which have to be proved before the main evidence may be admitted. **NRCD 323, s3(1)** defines it as “*any fact upon which depends the admissibility or inadmissibility of evidence, the qualification or disqualification of a person to be a witness, or the existence or non-existence of a privilege*”. It's the first thing to think about when a question of admissibility comes up.

It is information which conditions admissibility or inadmissibility of any evidence e.g. a claim to diplomatic immunity requires the ff conditions precedent:

- a. Claimant is a diplomat
- b. Claimant is in active service
- c. Claimant has made a claim

Conditions on Admissibility of Preliminary Facts

- Where the facts are contested, evidence has to be led to prove it.
- Sometimes in practice, the court is allowed to admit evidence on condition that the preliminary fact will be proved later. This discretion is vested in the court.
- If applicant fails to establish or prove the preliminary fact, the court is entitled to reject the evidence even if it's admitted.
- Sometimes the preliminary fact may also be a fact in issue. **NRCD 323, s4** provides that when a preliminary fact is also a fact in issue the trier of facts shall not be bound by the court's determination of the existence or non-existence of the preliminary fact.

Fact in Issue or Factum Probandum

“**Fact**”: information or material which the court needs to ascertain in order that it will have a basis for its decision

“**In issue**”: the problem to be resolved from the facts proved in the case

“**Factum probandum**”: issue to be resolved before the court can have a basis for deciding on the disputed interests of the parties

“**In two parts**”: facts which identify substantive law and secondly facts which identify evidence to be led.

³⁴ Matters to be proved before the main evidence may be admitted

In civil cases, the facts in issue are determinable on pleadings. E.g. where there's an action for claims for arrears of rent, preliminary facts are:

- a. Plaintiff is landlord or his agent
- b. Defendant must be the person liable to pay rent i.e. tenant, caretaker
- c. Rent must be outstanding
- d. A demand must have been made
- e. The demand must not have been complied with

Issue: whether rent is owed.

In criminal cases, the factum probandum is determinable on the charge and the particulars of the charge. E.g. in a running down case, the basic facts will be:

- a. Someone was in charge of a motor vehicle
- b. Driving without due care and attention to other road users
- c. Running over or hitting a car or person

Issue: whether the person drove negligently or carelessly

Collateral Facts

These are facts incidental or subsidiary to the main issue.

E.g. in a chieftaincy case involving whether or not a chief should be destooled, the basic issue is whether the individual should remain a chief. Alongside this issue, the stool may have stool regalia in the custody of the chief to be destooled. Another party may join the action for a claim as to the custody of the stool regalia.

Sometimes when the main issue is resolved, the subsidiary or collateral issue may be resolved. The resolution of the collateral issue may however not affect the main issue at all.

Shifting of Burden of Proof

NRCD 323, s14 provides that it is possible for the burden of proof to shift from one party to the other but the shifting of proof will arise only in respect of the burden of proof but not the burden of persuasion.

The fact that the plaintiff who makes an assertion must prove the assertion does not shift, unless and until the plaintiff establishes his/her claim.

Burden of producing evidence is at the beginning of the case.

Where the burden of proof is uncertain, it's placed on the party on whom it will be easier to discharge. In *Livison v Patent Steam Carpet Cleaning Ltd* [1977] 3 All ER 498, CA P took his carpet to D for cleaning and the carpet got lost while with D. D claimed that the carpet was accepted at the owner's risk and the

small print indicated that the company was liable to pay no more than GBP40; the carpet was worth GBP900. The issue was on who assumed the legal burden. CA held that legal burden was on D as the bailee to show how the loss occurred since P was outside the establishment.

RELEVANCY

Evidence is relevant if it is directed at proving or disproving an issue at stake. Lord Simon in **DPP v Kilbourne** [1973] AC 729 said that evidence is relevant if it is logically probative or disprobative of some matter which requires proof.

In Ghana, relevant evidence is defined in **NRCD 323, s51** as evidence relevant to the credibility of a witness or hearsay declarant, which makes the existence of any fact that is of consequence to the determination of the action more or less probable than it would be without the evidence.

The definition in **s51** connotes two ideas:

- a. Evidence should prove or disprove a fact in issue i.e. probative value of the evidence;
- b. The evidence must be material or have a bearing on the facts in issue. There must be a logical connection between the evidence and the issue i.e. material value of the evidence. The material part may or may not raise an issue.

Relevant evidence can thus be simply defined as evidence which tends to prove or disprove a material fact in issue.

In **Ratten v R**, it was held that the words spoken by the deceased were relevant to her state of mind and was not hearsay because it was not being relied upon to prove its contents. IOW the evidence was not being offered because the prosecution wants to imply that she was saying her husband was killing her. Rather, it was adduced to show a state of anxiety and fear from which the jury was to infer whether the defence of accident put forward by her husband was consistent with that kind of emotion.

In **R v Gilfoyle** the testimony of the deceased person's friends were accepted on appeal on the ground that they tended to prove the state of mind of the deceased i.e. she was not worried or depressed to the point of committing suicide. The evidence was thus relevant and so admissible.

ADMISSIBILITY

Admissibility is acceptance by a court of evidence offered by a party or witness.

In Ghana, the general rule is that only evidence which is relevant is admissible, subject to statutory exceptions. This is codified in **NRCD 323, s51(2) and (3)**.

The probative value and material value of the evidence conditions its admissibility.

There are several exceptions to the general rule so that evidence which is relevant may not be admissible.

- a. Statutory exceptions
- b. Common law exceptions
- c. Hearsay
- d. Privilege
- e. Public policy

- f. Exclusionary rules
- g. **NRCD 323, s52** – the court has discretion to overrule/exclude relevant evidence if probative value substantially outweighed by:
 - a. Undue delay
 - b. Waste of time
 - c. Unnecessary repetition of evidence
 - d. Needless presentation of cumulative evidence
 - e. Substantial danger of unfair prejudice
 - f. Substantial danger of confusing the issues

The court has power to control proceedings under **ss81-86**. A party which seeks to attack the credibility of a witness is for instance required to notify the court and every other party of this, but the witness need not be notified.

In the process of controlling proceedings, the court may disallow certain questions and may rule inadmissible certain facts which may be relevant. Per **s69** the court shall exercise reasonable control over the mode and order of interrogating witnesses and presenting evidence so as to make the interrogation and presentation as rapid, distinct and readily understandable as may be, and protect witnesses from being unduly intimidated, harassed or embarrassed.

Corroboration

Corroboration is defined as “the information which connects, affirms, or makes more certain the relevant portions of previous or future evidence in such ways that it enables the court to believe that the second (or corroborating) evidence confirms the previous evidence and that confirmation makes the previous evidence true”.

Corroboration is one of the collateral issues relating to proof and is concerned with the ascertainment of truth.

R v Baskerville [1916] 2 KB 658, 667 “*evidence in corroboration must be independent testimony which affects the accused by connecting or tending to connect him with the crime. In other words, it must be evidence which implicates him, that is, which confirms in some material particular not only that the crime has been committed, but also that the prisoner committed it*”.

See also

Commodore alias Kayaa v The Rep [1976] 2 GLR 486

Obeng v The Rep [1972] 2 GLR 107

Apertorghor v The Rep [1974] 1 GLR 347

In Ghana, corroboration has been defined in **NRCD 323, s7(1)** “*corroboration consists of evidence from which a reasonable inference can be drawn which confirms in some material particular the evidence to be corroborated and connects the relevant person with the crime, claim or defence*”.

There are 3 conditions to be satisfied before the definition will be applicable:

1. There must be a connection or relationship with previous evidence or future evidence

2. The connection must amount to affirmation or denial of previous or future evidence
3. It must be directly referable or attributable to the person or fact in relation to the defence or claim

Generally in Ghana, corroboration is not necessary to sustain any finding of fact or any verdict unless otherwise required by statute – s7(3).

The fact that there is no need for corroboration however doesn't mean that one does not need to look for corroboration because there are occasions where corroboration may be required. Per s7(5) the court may comment on the danger of acting on uncorroborated evidence and its effect on the decision as a whole. The warning comes in the form of Turnbull Guidelines which came from the case of **R v Turnbull** [1977] QB 224.

There are restrictions on the use of the guidelines in Ghana however. In practice, corroboration will be required in certain situations when contested e.g.

- a. Breach of promise of marriage
- b. Paternity proceedings
- c. Evidence of dead persons – **Moses v Anane** [1989-90] 2 GLR 694, CA

The requirement for corroboration is based on common law and common sense.

CREDIBILITY & EVALUATION OF EVIDENCE

Credibility is a method or system of determining the belief or disbelief of parties, accused persons, witnesses or their testimony.

Usually, credibility is decided by the judge even in indictable actions – *Ntim v Essien* [2001-2002] SCGLR 451

Basis for Determining Credibility – s80(2), NRCD 323

- *Demeanour* - s80(2)(a)

It entails the attitude, manners, facial expression and other behavioural aspects of the person in the box. It's determined from answers, reactions, responses, comportment and general physiognomy of the witness. The conclusion to be drawn from the demeanour may be that the witness is prevaricating, lying, hesitating, evasive, frank, straight forward, etc.

Mensah v Donkor [1980] GLR 825 some of the impressions and their effects on the judge were stated as follows “*the demeanour which actuated the impression must be expressed. It must be stated whether the witness was over-zealous on behalf of his party; exaggerating the circumstances...replying evasively...forgetting facts where he would be open to contradictions...pretending not to hear the question for the purposes of gaining time to consider the effect of his answer*”.

- *Substance of the testimony* – s80(2)(b)

The general rule is that the witness must testify on matters he knows personally.

There are lots of exceptions to this rule though, including the rule against self-serving testimony, voluntary timeous complaints, res gestae, allegations rebutting recent fabrications.

There are also exceptions where hearsay evidence may be admitted.

- *Existence or non-existence of fact testified to by the witness*
- *Capacity or opportunity of witness to perceive, recollect or relate facts about which he testified*

Phipson on Evidence, 12th Ed, para 1598 at p.662 summarises the credibility of a witness as follows “*intelligence, his disinterestedness, his integrity, his veracity...among the more obvious matters affecting the weight of a witness's evidence may be classed by his means of knowledge, opportunities of observations, reasons for recollection or belief, experience, powers of memory and perception and any special circumstances affecting his competency to speak to the particular case*”.

- *Bias, Interest or other motive*

There are 3 exceptions – the evidence of relatives, of a child, of a person of unsound mind. There is also the evidence of accomplices. Bias/interest often happens in chieftaincy matters.

With respect to evidence of relatives, *Nkaeguo v Kunadu* [1974] 2 GLR 150 is authority for the proposition that the fact that a person is a relative doesn't mean his evidence should be discounted. The court is not entitled to reject the evidence merely because of the relationship. The more recent case of *GPRTU v Ntrakwa* [1999-2000] 2 GLR 278 provides that "...there is no general principle to the effect that the evidence of a witness be rejected merely because the witness was related to the party on whose behalf he testified; whether the evidence should be rejected or accepted depends on facts and circumstances of each case...the evidence of a witness who was a relation was no doubt to be treated with caution and could be taken on its face value like the evidence of a party who was not a relation of any of the parties".

Act 560, s1 provides that a child is anyone below the age of 18 years. With respect to the testimony of a child or person of unsound mind, *NRCD 323, s59(2)* states that a child or person of unsound mind is competent to be a witness unless he is disqualified by *s59(1)* which is to the effect that a person isn't qualified to be a witness if he can't express himself or is incapable of understanding the duty to tell the truth.

Accomplices are persons who participate in a crime or who profit from the crime. Per *NRCD 323, s7(3)*, the evidence of an accomplice is admissible and *s7(2)* provides that the evidence of an accomplice may even be used to corroborate or support unsupported evidence.

By law, a child below the age of 14, an informer, and an agent provocateur are not considered as accomplices. Merely standing by when an offence is being committed also does not make a person an accomplice – *Otsiba v Republic* [1978] GLR 290. A person becomes an accomplice when he testifies for the prosecution, on behalf of himself or for the co-accused.

- *Character of witness*

NRCD 323, s83(1) & s82

- *Statement consistent or inconsistent with testimony in court*

NRCD 323, s80(g) provides that previous evidence, statement or declaration may be used to assess the witness or party in the box. Where the witness gives evidence against the side which called him, it's not open to the court to gloss over the conflict and make a specific finding on that issue in favour of the party whose case was contradicted – *Elizabeth Asare v Kwabena Ebow* [2013] 57 GMJ 152

Where the witness gives evidence in support of the opponent, it cannot be ignored and shall be treated as corroboration - *Manu v Nsiah* [2005-2006 SCGLR 25. This proposition developed in *Trifo v Dua* [1959] GLR 418

- *Previous Conviction*

Generally, previous conviction is not admissible unless the party introduces his character in issue or attacks the character of the opponent or the witness of the opponent or there is proof on similar facts. **NRCD 323, s83 & s85.**

MATTERS NOT REQUIRING PROOF

This is due to the belief that those matters exist. There are two general situations where the law doesn't require proof – **judicial notice** and **admissions**.

Judicial notice is acceptance by the tribunal of the truth of a fact without proof for the reason that the truth is within the tribunal's own knowledge. The rationale for it is that it provides a filtering system for separating important and arguable issues from those which are not. It also saves time and labour – *de minimis non lex curat*. Where the court adopts the truth of something without insisting on proof, it's said to be taking judicial notice.

NRCD 323, s9 regulates the law on judicial notice.

Conditions for taking Judicial Notice

- a. The matter under consideration should relate to facts in issue
- b. The matter must be generally known i.e. commonly, generally or universally acknowledged in the society; so notorious that everybody virtually knows it; it should be certain and definitive
- c. It must be known within the area where the court is situated. Territorial jurisdiction has two concepts;
 - a. Matters associated with culture
 - b. Localised or geographical facts
- d. The matter must be capable of accurate and ready determination by resort to sources whose accuracy cannot reasonably be questioned
- e. The matter must relate to facts which are not subject to reasonable challenge, question or contest
- f. In **Nyarko v The Rep** [1974] 1 GLR 206 it was held that the fact must be so notorious that anyone who gives evidence to the contrary must be taken to be committing perjury.

Matters to be Taken Judicial Notice Of

- So notorious i.e. commonly, generally or universally acknowledged in the community
- Clearly established i.e. it should be certain and definite and so beyond dispute, contest or controversy and one in respect of which different people do not hold different ideas.
- Capable of being demonstrated by reference to readily obtained source or authoritative source
- Evidence of their existence is unnecessary
- If checked, it's from unimpeachable or undisputed sources and the same conclusion held by the majority will be arrived at.

When Judicial Notice may be Taken

- a. By the court - suo motu
- b. On application by a party
- c. At any stage of the trial

Judicial Notice and Personal Knowledge of the Judge

The general rule is that the judge is not allowed to rely on his personal knowledge to decide a case. The exception is where the judge takes judicial notice of the fact.

Lord Sumner said in *Commonwealth Shipping Representative v P&O Branch Services* [1923] AC 191 at 212 that “*judicial notice refers to facts which a judge can be called upon to receive and act upon either from his general knowledge of them or from enquiries to be made by himself or from his own information, from sources to which it is proper for him to refer*”.

The legislature may also provide enactments which authorise judicial notice to be taken of certain facts.

JH Mensah v The Republic [1979] GLR 523 sets out some of the principles on when to take judicial notice. In that case, Mensah and 2 others were on trial for sedition iro a letter he had allegedly written and circulated which inter alia accused the Acheampong government of mismanaging the country. The trial judge took judicial notice of the fact that the economic ills of the country were due to world inflation, and held that the document was seditious and that the clandestine manner in which the document was disseminated imputed malice to Mensah. He thus sentenced appellants to various terms of imprisonment. On appeal, held inter alia by Koranteng-Addow J that judicial notice referred to *facts, which a judge could be called upon to receive and act upon either from his general knowledge of them or from inquiries to be made by himself for his own information from sources to which it was proper for him to refer*. To take judicial notice of a fact, however, the judge had to be convinced that *the matter was so notorious as not to be the subject of dispute among reasonable men, or that the matter was capable of immediate accurate demonstration by readily accessible sources of indisputable accuracy*. The facts, which the trial judge took judicial notice of in the instant case, could not be classified under judicial notice. Although world inflation was a matter of public notoriety the extent to which world inflation affected each country was not a matter of which judicial notice could be taken. Again one could also not make a sweeping statement about world inflation being due to the oil crisis and the extent to which this country has been affected without basing such observation on any evidence. Furthermore a court was not the proper forum for the evaluation of economic factors, which contributed to inflation. Consequently to the extent that the judge did not base his verdict on admissible evidence he was wrong.

Read the ff cases in *The Law of Evidence* by Maxwell Opoku-Agyeman:

R v Ingomb (1964)3 P 816, the applicant was convicted of using threatening and abusive words in a public place. The presiding Magistrate in the trial took judicial notice of the fact that the part of the Herald newspaper’s office where the words were spoken was opened daily as a reading room and that the public had access to it. In reversing the conviction on appeal, the court said that “the Magistrate was not entitled to take judicial notice of that fact, because it was not a fact notoriously establish that evidence of its existence is not necessary.

Cubson v Bon Galahn Hotel 185 NYS P 154 (SC), the issue was the absolute liability of an innkeeper. This touched on the question whether the establishment was a hotel. The trial judge volunteered, “*I know Galahn Hotel as well as the witness does himself. I will give a ruling now, it is a hotel*”. It was held on appeal that the judge gave a ruling, which he does not share in common with average members of the community.

There are certain matters in respect of which judicial notice must be taken:

- a. Trade and professional practices if sanctioned by decisions of the court
- b. The law and statutes [but not foreign law]
- c. Historical facts and documents – **Act 459, s55(2)** may be used in determining the contents of customary law; text books may also be taken into account.
- d. **Hilodgie v George** [2005-2006] SCGLR 974 held that facts in text books which have been challenged by other writers cannot be taken judicial notice of
- e. Political and administrative matters

Davis v Randall [1962] 1 GLR 1 the intestate was born in Sierra Leone but moved to Ghana and married P's mother under Fante customary law. They had children. The marriage ended and he returned to SL where he married a Sierra Leonean woman under SL ordinance. Upon his death, his wife, as administratrix sold his property in Ghana to D2 who leased it to D3. According to the lex successionis of SL, the eldest legitimate son is the rightful heir of a deceased father. P however failed to plead and prove SL law which is foreign law and the court refused to take judicial notice of the laws of that country.

Judicial notice was taken of the following facts

- the advancement of learning is among the purposes for which the University of Oxford exists – **Re Oxford Poor Rate Case** (1857) 8 E& B 184
- that cats are kept for domestic purposes – **Nye v Niblett** [1918] 1 KB 23
- that men and women sharing a bed are likely to have sexual intercourse – **Woolf v Woolf** [1931] P134
- that sporting celebrities seek endorsement – **Irvine v Talksport Ltd** [2003] 2 All ER 881; [2003] 1 WLR 1576
- that the court in England may be taken to know the meaning of any ordinary expression in the English language – **Chapman v Kirke** [1948] 2 KB 450 at 451
- that a post card is the kind of document, which might be read by anyone – **Huth v Huth** [1915] 3 KB 32
- but not that husbands read their wives' letters – **Executive Director of Health v Lily Creek International Property Ltd** (2000) 22 WAR 510

November 12, 2013

Admissions

Admission is a voluntary acknowledgment of the existence of fact relevant to an adversary's case.

The rationale for courts accepting admissions is that it does not require proof.

Admissions may be formal or informal.

Formal Admission

There are 5 methods for formal admissions in civil cases

1. Statement of case
2. Pleadings
3. Through notice to admit facts or produce documents
4. By implication through representative – s119(a)
5. By a party through correspondence or proceedings leading to litigation if not without prejudice

Formal admissions are usually binding on the party who makes it or on whose behalf it is made.

A formal admission is conclusive and cannot be contradicted.

A formal admission may however be amended with leave of the court [[file an application for leave to amend Or. 23 r 5, CI 47](#)]

Informal Admissions

They are rebuttable admissions.

They may take the form of implied, incidental or adoptive admissions. The person may not have admitted it but the admission may be implied from conduct – *Bassela v Stern* (1877) 2 CP 265 [a man was told in the face that he had reneged on his promise to marry a woman, instead of answering the accusation, he offered her money to go away. Court held that his conduct was an admission that he had made the promise and had also broken it.](#)

Statutory provisions on admissions may be found in [CI 47 Or. 23](#) and [NRCD 323, s119](#). NRCD 323 provides that admissions are an exception to the hearsay rule.

Conditions for Admission under [s119](#)

1. Admission should be against a party in the case [because no one will give evidence against himself]
2. The party should have adopted or used the admission.
3. If the admission is made on behalf of the party, he should have permitted or sanctioned it.
4. It should be made by an employee or agent during subsistence of employment or agency.
5. In criminal cases, the declarant should have made the statement while participating in a conspiracy to commit a crime or civil wrong and in furtherance of that conspiracy

Admission in Civil Cases

Formal admission is through the 5 processes above.

Conditions for admission are as set out in s119.

Or 23 of CI 47 has further rules on admissions:

1. Admission may be made voluntarily by a party.
2. A party may apply to an opponent to make an admission.
3. Where a party is served with notice to admit facts and he doesn't react within 15 days, he shall be presumed to have admitted it – *IFC v Shangri-La* [2003-2004] 2 GLR 59.
4. Admission must be specifically denied otherwise a party will be deemed to have accepted it
5. Where admission is made unconditionally, it operates to prevent/bar the application of the Limitation Decree (NRCD 54) – *Arcton v ACC* [1977] 2 GLR 43

Admissions in Criminal Cases

- Admissions may be made in court (plea of guilt) or outside the court (confession)
- The statutory basis for this is NRCD 323, s119(e) i.e. participating in a conspiracy to commit crime or civil wrong and in furtherance of that conspiracy.
- Admissions amount to confession
 - o Confession when it's done outside court
 - o Plea of guilty when done in court. There can be admission to any charge, apart from murder³⁵.

Confessions

Confession is an admission by an accused person admitting the offence or commission of or participation in the commission of the offence.

Where the confession is done out of court, it's hearsay³⁶ and not admissible, unless made voluntarily. Exception to the hearsay rule is under NRCD 323, s120.

Confessions can be judicial or non-judicial.

Judicial confession connotes two concepts:

- a. Where the accused pleads guilty
- b. Where the confession is made during committal proceedings

Admissibility of confession made inside the court depends on the signature of the magistrate. Thus magistrate's signature is prima facie evidence of the statutory statement – *State v Banful*. [1965] GLR 433 a school boy aged 19, was alleged to have murdered the bursar of his school by gunshot wound. None of the 24 PWs gave material evidence which connected the accused to the death of the bursar. The prosecution sought to tender a statement which the accused had made to the investigating officer confessing to the crime. This was held to be inadmissible on the ground that it was not made voluntarily because a promise that he would be released if he made the statement was operating on his mind at the time of making the confession. The prosecution also sought to tender a statutory statement which the accused made to the magistrate at his committal. This was also held to be inadmissible for the same reason. The prosecution then pressed for a case to be stated for the consideration of the SC but the trial

³⁵ Because punishment for murder – death – cannot be reversed hence admission of guilt not accepted

³⁶ Hearsay is any statement made out of court

judge refused that application. At the close of the prosecution's case, the judge ruled that there was no case to go to the jury. He accordingly directed the jury to return a verdict of not guilty, which the jury did. Prosecution appealed and the SC held *inter alia* dismissing the appeal that

- a statutory statement made by an accused person is not admissible automatically in trials on indictment. Its admissibility is governed by the same principles which govern the admissibility of any other statement, judicial or extra-judicial. The only difference is that by virtue of s269(1) of Act 30, a statutory statement whether signed by the defendant or not, may be admitted in evidence without further proof by the prosecution, unless it is proved that the committing magistrate purporting to sign it did not in fact sign it, while the admissibility of any other statement depends upon proof.
- Where the prosecution intend to rely on a confession statement, it is their duty to prove affirmatively that the admissions therein were voluntarily made and not induced by any promise of favour or advantage or by the use of fear or threats or pressure by a person in authority
- In a case where an earlier statement has been rendered inadmissible because it is not voluntary, a subsequent statement can only be admitted, if it is proved to have been made voluntarily and the inducement held out in respect of the earlier statement had dissipated.

Agyiri alias Otabli v Rep [1987-88] 1 GLR 58

Conditions for admitting non-judicial confessions

1. Confession by admission, participation, presence – *Kofi Genfi II v Genfi II* [1964] GLR 548 at 550 authority for confession by implication i.e. bigamy in this case
2. Confession is admissible as a variant of admission. “A conviction can quite properly be based on the evidence of a confession by the prisoner and such evidence is sufficient as long as the trial judge...enquired most carefully into the circumstances in which the alleged confession was made and was satisfied of its genuineness” – Practice Note, SC, [1961] GLR 626 (in *State v Mawuko Aholo*)

Confession from Presence

It shouldn't be concluded that a person has confessed by presence at the scene of a crime.

If a person doesn't talk in court, it's no evidence of confession, it's the person's right – *Art 19(10)*.

In *Tetteh v The State* [1965] GLR 670 the accused person was charged with defrauding by false pretences. He took money to supply photographic material and failed to supply them. Accused denied the offence and in defence said he went there with a friend. He however didn't show the police where his friend was during the investigation. Magistrate concluded that failure to show the friend meant he had something to hide. He was thus convicted. On appeal, the court said the trial magistrate misdirected himself on the burden of proof because there is no duty on the accused to help the police in their inquiries since the accused is under no obligation to prove his innocence. Silence doesn't amount to confession!

COP v Donkor [1961] GLR (Pt II) 694, SC a.k.a. one night lodger. The complainant went into the bathroom and when he returned, the lodger had disappeared and things were missing from the room.

Accused refused to give a statement. In court, he said the door was open so anyone could have taken the items. He was convicted for not explaining himself. **On appeal...**

Otsibah & Ors v Rep [1978] GLR 290, CA; man intended to kill his friend, he asked other friends to stand aside, shot the friend, and compelled the bystander to decapitate the dead man at gun point. They were all held guilty for murder. On appeal, it was held that, presence at the scene of a crime doesn't necessarily make a person a participant in the crime.

Conditions on admissibility of confession – **NRCD 323, s120**.

- Form part of the crime
- Should be voluntarily made
- Witnessed by independent witness if accused is under arrest, detention or restriction – **SMCD 237** provides that an independent witness is any competent and compellable witness including a policeman or uniformed officer. The decision in **Frimpong alias Iboman v Rep** [2012] SCGLR 279 is wrong and was per incuriam because it was not made in reference to the law.
- If the person is blind or illiterate, the confession should be made under a certificate

Where the person is not under arrest, detention or restriction, if the confession is found voluntary, it will be admissible – Duah v Rep.

Constitutional Requirements Affecting Confessions

- **Art 14(2)** provides that a person arrested shall be informed of the reasons for his arrest and a right to a lawyer of his choice in a language he understands. If this isn't done, the arrest is unlawful. **Murray v UK** (1996) 22 EHRR 29, ECHR; accused was denied access to his lawyer for 48 hours and the court ruled that it was evidence of denial of fair trial.
- **Art 1(2)** provides that any law found to be inconsistent with the Constitution shall be void. Thus, confessions obtained in breach of the Constitution are void. In **Tuffuor v AG** it was found that no one can make unlawful what the Constitution says is lawful and vice versa. Thus where an Act is in contravention of the Constitution, it is void to the extent of the inconsistency.

Involuntary Confession – s120(5)

This may include statements made by the accused under any of the following conditions;

- Physical or mental condition – **State v Banful**
- Cruelty or inhuman treatment – **Republic v Agyiri** [1982-83] GLR 251
- Threat and promise – **COP v Sem** [1962] 2 GLR 77, SC

Current Law on Admissibility of Confession – **Art. 14(2)**, **NRCD 323, s120** and **Duah v Rep**.

1. Where the statement or confession was made while the accused was under arrest, restriction or detention, he should be told, in a language he understands, of the reasons for his arrest.

2. Where the accused is under arrest, restriction or detention, he should be told that he has a right to a lawyer of his choice.
3. Where the accused is under arrest, restriction or detention, his statement should be witnessed by an independent witness.
4. Independent witness may be any competent **and** compellable witness including members of police service, Armed Forces, AG's Dept, EOCO, etc.
5. The independent witness should be able to read and write and understand the language spoken by the accused person.
6. If the accused is illiterate or blind, or where the confession is in writing, the independent witness should interpret the statement to him and write on the statement a Certificate - "I hereby certify that the statement has been interpreted to Adwoa Mansah who is illiterate in her presence and she understood it before she signed/thumb printed it"
7. The accused does not have to approve the independent witness.
8. The arrest, detention or restriction does not always have to be at the instance of a State agency.
9. The fundamental requirement is voluntariness of the confession. If the confession is made by the accused while not under arrest or any restriction, the confession will be admitted even if there is no independent witness.

In determining the voluntariness of confession, the moment the confession is objected to, there must be automatic trial into the admissibility of the confession by a trial within a trial or voir dire.

Prosecution leads evidence to show that the confession was lawfully obtained. The accused gives his version e.g. confession was under duress. Other witnesses give evidence and a ruling as to admissibility will be made by the judge, jurors play no role in determining admissibility. Trial takes place in the absence of the jurors.

November 19, 2013

OBJECTIONS & EXCLUSIONARY EVIDENCE

Objection to evidence means invitation to the court to reject or refuse to accept evidence.

Exclusionary evidence means a matter that has been refused admissibility by the court.

Statutory provision: **s5(3) & s6 of NRCD 323**

1. The objection shall be made at the time the evidence is offered i.e. it should be done timeously.
2. The court has a duty to record the objection, the answer to the objection and then to make a ruling on the objection
3. Where the case is appealed, the decision of the lower court shall not be set aside just because of the wrong admission of evidence unless the ff conditions are satisfied
 - a. The substance of the excluded evidence was made known to the court by the questions asked, an offer of proof, or by any other means; and
 - b. The appellate court decides that the evidence should have been admitted and the want of admission had resulted in a substantial miscarriage of justice.

Aryeh & Kakpo v Ayaa Iddrissu [2010] SCGLR 891 – a party should object to evidence at the time it is offered “if a party looked on and allowed the inadmissible evidence to pass without objecting, it would form part of the court record and the trial judge would be entitled to consider it in evaluating the evidence on record for what it is worth”

Amoah v Arthur [1987-88] 2 GLR 87, CA deals with failure to raise objection. “*It was the duty of the trial judge to reject inadmissible evidence which has been received with or without objection, during the trial when he came to consider his judgment; and if he failed to do so that evidence would be rejected on appeal because it was the duty of the courts to arrive at decisions based on legal evidence only*”

Edward Nasser & Co Ltd v McVroom & Ano [1996-97] SCGLR 468 failure to object to the admission of evidence would preclude a party from raising the objection on appeal unless he can establish that there has been substantial miscarriage of justice.

Juxon-Smith v KLM Dutch Airlines [2005-2006] 438 a party who had at the trial allowed a document to be admitted into evidence without objection, would not be estopped, on appeal, from raising for the very first time, legal objections to its admissibility. The matter was governed by two general rules and the exception thereto. The first was that where a point was raised, it must be one which had been relied on at the trial but had been wrongly determined. The second general rule was that if a party had fought a case on a point of law and lost, he could not, on appeal, fight it on grounds which were open to him at the trial on the pleadings and the evidence. The well-known exception to those general rules was that where the point being urged for the very first time was of substantial importance and could conveniently be argued without further evidence being taken by the appellate court, the party would not be barred from raising those legal points.

Objections raised on appeal

Generally, objections are not allowed on appeal unless the following conditions exist:

1. Jurisdictional issues raised – *Amoasi v Twintoh* [1987-88] 1 GLR 554
2. Constitutional issues are raised – *Dexter Johnson v Rep* [2011] SCGLR 601 (mandatory death sentence)
3. Point must have been raised but wrongly decided by the trial court
4. Point of substantial importance and can be disposed of [by argument only] without leading further evidence.

Ill-gotten or Illegally Obtained Evidence

This covers the following situations:

- Investigations into crimes
- Police surveillance activities
- Undercover procedures
- Bugging or secret listening of conversations
- Tape recording evidence
- Entrapment
- Confessions and admissibility of evidence

There are two schools of thought on what should happen to evidence obtained through improper methods:

1. Evidence illegally obtained is inadmissible

- a. Fruit of the poisoned tree i.e. if the method of obtaining the evidence is tainted at source, then the evidence must also be rejected.
- b. Criminal justice system is to protect individuals from abuse of state power
- c. Integrity of criminal justice system to ensure reliability of evidence to ensure legitimacy of verdicts
- d. Rendering illegally obtained evidence inadmissible will discourage trampling on individual liberties including *Art 14(3)* – appearance in court within 48 hours; *Art. 15(2)* – torture or cruel inhuman or degrading treatment or punishment; *Art. 18(2)* – interference with privacy of home, communication, etc.

Since the Constitution in *Art 1(2)* provides that any law inconsistent with the Constitution shall be void to the extent of the inconsistency, then any evidence gained contrary to it shall be void.

Tuffour v AG [1980] GLR 637 “no person can make lawful what the Constitution says is unlawful. No person can make unlawful what the Constitution says is lawful. The conduct must conform to due process of law as laid down in the fundamental law of the land or it is unlawful and invalid”.

Rules on admissibility of confession provide that where the confession is not witnessed or made under a certificate in prescribed cases, it’s inadmissible.

2. Evidence should be admitted if it’s of sufficient probative value

- a. “The duty of the court is to decide whether the appellant has committed the offence with which he is charged and not to discipline the police for exceeding their powers” per Lord Fraser in **Fox v Chief Constable**
- b. “It matters not how you get it, if you steal it even, it would be admissible in evidence” per Crompton J in **R v Leatham** [1861] 8 Cox CC 498
- c. The gravity of the offence should be considered – **R v Khan** [1997] 3 All ER 558; **Kwabena Amaning v Rep** (unreported)

Ghanaian Position is that admissibility is based on relevance as set out in **s51 of NRCD 323**. In **Kuruma v R** [1955] AC 197 there was a search without warrant which was clearly illegal and the accused was convicted on what was found. The accused person’s appeal was dismissed on the ground that the court was concerned with relevant evidence and not how it was obtained.

Jeffrey v Black [1978] QB 490 – arrested for stealing sandwiches, search revealed quantity of drugs and was convicted. On appeal, held that evidence was properly admitted

R v Sang [1980] AC 402 accused persons were charged with conspiracy to forge bank notes and possession of bank notes, they pleaded not guilty and claimed police entrapment because they were tricked into taking part in the offence [this is however an admission of committing the offence]. Mini trial on admissibility was upheld and on appeal, the conviction was upheld.

Conclusion

All laws and procedures shall be subject to the Constitution. If they do not conform to the Constitution, they are inadmissible.

See: **NRCD 323, s5 & s52; Act 459 s31, s33, s34**

THE COURSE OF THE TRIAL

Preliminary Matters

- Interview of clients
- Decision on course to take – cause of action, nature of defence
- Evidence
- Witnesses
- Applicable law

Witnesses

“Witnesses are weighed not counted”. Thus, it’s not about the plurality of witnesses but the quality of their submissions.

The general rule is that, a party is not bound to call all witnesses in a case even if they are material.

In civil cases, there is no obligation to call witnesses – *Abadoo v Awotwi* [1973] 1 GLR 393.

It is nothing but madness for a party to rely on his opponent to prove his case – *Gyamfi v Badu* [1963] 2 GLR 596.

The prosecution is not bound to call blood relations of the accused if they know he will give evidence against them – *Amlalo v The Rep* [1979] GLR 162, CA.

Competence & Compellability

A witness is competent if he is qualified to give evidence.

The general rule is that, unless disqualified by statute, every person is competent to give evidence if he is capable of expressing himself and understands the duty to tell the truth – *NRCD 323, s58 & s59; In Re Bill (Deceased) Abeka v Tetterley* [2007-2008] SCGLR 66

A witness is compellable if he may lawfully be obliged to testify in court. He may be punished by law if he does not testify when summoned. A witness who has diplomatic immunity is not compellable.

Unfavourable witness/Hostile witness/Adverse witness

A witness who’s statement in court is inconsistent with previous statement or conduct or he tries to speak the truth but his testimony is not useful to the side calling him.

No animosity, no hostility – *Lanquaye v The Rep* [1979] 1 GLR 1

At common law, counsel cannot cross examine an unfavourable witness.

In Ghana, the credibility of a witness or of any part of his testimony may be attacked or supported by any party, including the party calling the witness – s81(1), NRCD 323.

A hostile witness is one who refuses to tell the truth, who stands mute only in the court room or who turns out to be obstructive inside the court room – *Egbetorwokpor v The Rep* [1975] 1 GLR 485 at 493, CA a child incriminated his father but retracted to say his father was innocent.

NRCD 323 in s72(1) uses adverse witness only not hostile/unfavourable. A party whose relationship to a party makes his interest substantially the same as a party is an adverse witness.

A hostile witness can be asked questions by his own side – s81(2); can be asked leading questions³⁷ – s72(2).

Prior leave of the court must be sought to treat someone as a hostile witness.

There is no express reference to a hostile witness or unfavourable witness in NRCD 323. The rules of common law and convention apply. It is the judge who decides whether a person is a hostile witness.

Court Room Requirements

Trial = it connotes the adoption of evidence and the arguments

Hearing = the making of arguments simpliciter. Hearing covers motions, applications, case stated³⁸, reference and appeals, review.

Filing of applications and motions include attachment of affidavit. The difficulty is admissibility.

Responsibility of the Trial Judge and Magistrate

- Power of judge to control the presentation of evidence s58, Act 459
- NRCD 323, s52
- To call witnesses – s68(1)
- S69
- S70
- S72
- S81
- S178(4)
- Or.1 r1(2), CI 47
- Determines who to start – s165, Act 30 iro criminal cases
- S14, NRCD 323 on civil cases
- S17

³⁷ Leading questions suggest the answer to the witness; or makes the witness answer 'yes' or 'no' thus giving him no option to be evasive

³⁸ Case stated is where a lower court refers an argument to a higher court

Procedure in the Court

Adducing evidence in the form of

- Evidence-in-chief
- Cross-examination
- Re-examination

Exclusion of witnesses from the court

- s78
- Art. 19(14)
- Act 30, s165
- Children (below the age of 18 are not allowed to hear certain cases)

Trial

Oaths and affirmations

- Act 459, s62
- Oaths Decrs, 1975 (NRCD 6)
- NRCD 323, s61

SOB, SOK, SOC, SARB (swear according to religious belief)

Speaking from the dock and not from the witness box and is therefore not subject to cross-examination – s63(1), NRCD 323.

Act 30, s174

Contempt of court – Act 459, s62(4)

Evidence-in-chief; 2 methods

1. question and answer
2. Simple prose

There are two objectives of evidence-in-chief: punch holes and criticise

Leading questions NRCD 323, s70(1).

Exception is in NRCD 323, s70(4) e.g. name, where you live, age

Leave of court is needed to ask leading questions. The court thus decides whether leading questions should be asked.

Refreshing the memory – s77(1)

Exhibiting documents

Cross-examination – questioning of a witness by the party opposed to the one on whose behalf he testified in the evidence in chief (unless treated as hostile witness)

Statutory provisions – Act 459, s62
NRCD 323 s71

Objectives of cross-examination
Scope of cross-examination
Mode of cross-examination
Re-examination: 3 objectives
Evidence without cross-examination

Modes of Trial
- Summary trial
- Trial on indictment

Judge or magistrate sitting alone
Trial by judge and jury
Trial by the panel system

November 28, 2013

TRIAL BY JUDGE & JURY

It's a type of trial by indictment. It covers criminal cases only.

The legal basis for jury trials are set out in **Art. 19(2)** of the 1992 Constitution i.e. capital offences and offences punishable by life imprisonment.

There has however been a case where trial by judge and jury was used in a trial other than as set out in Art. 19(2). In **Rep v Maikankan** the offence of fraud by false pretences was conducted by assessors and was held to be proper because it could potentially have resulted in a life sentence.

A trial on indictment cannot commence unless there has been committal proceedings in a DC – **s44, Act 30**.

The jurors must be empanelled before the commencement of the trial – **Addai v The Rep** [1973] 1 GLR 312 **evidence taken before the empanelling of jurors was held to be void**.

At the conclusion of the trial, the judge must sum up for the jurors before the verdict is announced. It's a summary in simple terms to aid jurors determine facts and outcome. **S277 of Act 30** is the authority for this proposition. In **Berko v Rep** [1982-83] GLR 23 it was held that **s277** imposes a compelling duty on the judge to sum up in an indictable hearing although the law appears to be discretionary. See also **Practice Note State v Amoh** [1961] GLR (Pt II) 637. In jury trials, judgment is not written, it's why summing up is required because the judge only gives directions.

Functions of Judge & Jury

Judge

- Decides on all questions of law
- Decides on relevance of evidence
- Decides on admissibility of evidence
- Decides on the propriety of questions asked during the trial
- Decide on the meaning and construction of documents
- Can express his opinion on the facts but with proviso; **Bodua alias Kwata v The State** [1966] GLR 51, SC *every time opinion is given, he must explain to the jurors that they are not bound to accept his opinion on the facts*
- Provide directions to jurors on conclusion
- Further direction subject to 2 conditions
 - o Unable to reach verdict
 - o When demanded by jurors e.g. in **Nankani v The Republic** [1974] 2 GLR 145, CA (further directions on the difference between provocation and self-defence)
- Directions for unanimous verdict in murder cases
- Dismiss jurors and order retrial if non unanimous verdict returned
- Impose sentence or order acquittal

Jury

- **Beniako v Rep** [1995-96] 1 GLR 32 sets out 3 functions
 1. Determines credibility of witnesses
 2. Evaluates all evidence adduced in court
 3. Decide the guilt or innocence of the accused
- Decides on all questions of fact - s2(1) of NRCD 323
- S2(3) of NRCD 323 provides that where there is no jury, the judge shall determine the questions of fact
- Foreman announces the verdict
- Foreman has duty to announce whether there is a unanimous verdict in murder cases or by majority in non-capital offences

Format of Summing Up

No particular format is required – *Agyeman v The State* [1964] GLR 681 and *Oduro v The State* [1967] GLR 36.

The most important issue is the effect of the summing up on the mind of the jury – *Kluvia v The State* [1965] GLR 725

Summing up must be fully done orally and not by mere notes – *Berko v Rep.*

Summing up should be recorded – *Nankani v The Republic.*

Factors to be considered in making the summing up

1. The nature of the charge
2. Evidence led and
3. The law applicable.

The *Practice Note (State v Yaw Amuah)* [1961] GLR 195 of the SC given on 10th April 1961 states that *“it is the duty of the trial judge to place the prisoner’s case adequately before the jury, that is to say, he should remind the jury of the general nature of the defence, but not that he may present a different case no matter how favourable that may be to the prisoner. It is of the greatest importance that the jury should be directed in an impartial way on the facts, and not in such a way as to indicate what they should find; it is also imperative that the judge should point out the considerations for the jury to bear in mind in deciding whether or not they should find the prisoner guilty. Although a judge is not debarred from expressing his own opinion on the facts, it is his duty at the same time to warn the jury that they are not obliged to accept the opinion expressed by him on the fact”*.

The quotation above was repeated in The Practice Note: *The State v Kwame Amoh* [1961] GLR 637 and made 5 points on the content of summing up

1. It should cover the ingredients of the offence
2. What is required to prove each ingredient
3. The principles of law applicable to each ingredient of the offence
4. A summary of the evidence adduced by both the prosecution and the defence
5. “Expand or expound to the jury the defence put forward by the prisoner. Whatever the defence of the prisoner may be, however weak or improbable, he is entitled to have it put adequately to the jury.”

Sample format

a. The Charge

Summing up may be begun with a reference to the charge³⁹ and *“it’s clearly the duty of the trial judge to explain to the jury what the ingredients of the offence are and what evidence is required to prove each one of them and also the principles of law applicable”*.

b. The evidence adduced

³⁹ You can also begin with the facts

There must be a summary of the salient and material facts – *Kambe and Ors v Rep* [1989-90] 1 GLR 213

c. Burden of proof

Agyeman v The State [1964] GLR 681. The prosecution has the burden of proof.

d. State the case of the defence

There is no onus on the defence to prove the accused person's innocence – *R v Murtagh & Kennedy* (1955) 39 Cr App. R 72. Put the case of the defence fairly by making a complete analysis of the facts of the case so as to highlight the crux of the case for the defence.

The judge must raise the defence that the accused person is entitled to on the facts even if the accused person doesn't raise that defence.

Also if the facts do not warrant a defence, the judge must not raise it – *Kuo-Den alias Sobti v Rep* [1989-90] 2 GLR 203, SC

The judge need not direct on a defence not arising from evidence – *State v Yaw Amuah* (Practice Note) [1961] GLR 195, SC

With respect to summing up in insanity cases see *Kuma v The Rep* [1972] 1 GLR 179, CA. The accused must prove his insanity on a balance of probabilities – *Collins alias Derby v The Rep.*

Case for the defence

- Explain the defence to the jurors in detail
- Explain the evidence adduced by the accused and the extent that the evidence establishes the defence that the accused is putting across to the court
- Point out the explanation relied upon by the accused
- Where the judge entertains any doubt, he should not call upon the accused to open his defence [especially after the submission of no case]
- Where facts amount to a defence, it is the duty of the judge to direct the jury on the facts; it's a usurpation of the functions of the jury for the judge to find facts and direct the jury to convict on the basis of his own view of the facts – *R v Ojojo* [1059] GLR 207
- The trial judge should point out any defence that is open to him if even he does not raise it by himself but there must be evidence on the record that warrants the raising of that kind of defence
- The issue whether the killing was intentional or accidental is a matter for the jury to decide since they are matters of fact – *Awedam v The Rep* [1982-83] GLR 902, CA
- In the summing up the judge has the duty to direct the jury that the accused person is entitled to the benefit of the doubt and that direction too should be recorded – *R v Dagarti* (1944) 10 WACA 272

The Verdict

- It's binding on the judge except it is incomplete, vague or illegal.
- In murder cases, it must be stated whether the verdict is unanimous or by majority

- In murder cases, the judge should direct on the need for unanimous verdict otherwise there will be a mis-trial – *Moshie v Rep* [1977] 1 GLR 287; *Zuta Kwabena alias Donkor v The State*.
- If jurors disagree, discharge them, order a re-trial or give them further directions

Criticism of Summing Up

The fundamental rule on criticism of the summing up based on misdirection was stated in *Apaloo v Rep* [1975] 1 GLR 156 “...the ground of complaint must allege not only whether the misdirection was one of law or of fact, but also its nature”.

Misdirection is where wrong instructions which affect the final outcome of the case are given to the jurors.

Misdirection by omission or misdirection by non-direction is failure by the judge to give instructions on an essential aspect of the facts or the law e.g. failure to direct on alternative defence or alternative verdict. In *Akorful v The Rep* [1963] 2 GLR 371 was a failure to direct on distinction between murder and manslaughter. In *Sabbah v The Rep* [2009] SCGLR it was failure to direct on self-defence and provocation; *Abbam v Rep* [1967] GLR 699

Misdirection or non-direction should always lead to miscarriage of justice otherwise it will not affect the outcome of the case. In *Yirenkyi v The State* [1963] 1 GLR 66, SC held that where properly directed the jury would have returned the same verdict, there is no substantial miscarriage of justice. In *Ketsiawah v The State* [1965] GLR 483 the misdirection on intoxication inured to the benefit of the accused.

Directions on Insanity

See: Practice Note: State v Amoh

- Lack of unanimity
- Precedents on summing up
 - o *R v Gyamfi* [1960] GLR 45 stone thrower at political party rally, one person died. Reduced to manslaughter on account of defect in summing up
 - o *Idrisu Gonja v The State* [1964] GLR 573 in a charge of murder the judge must direct the jury on clear distinction between intent to cause death and intent to cause harm
 - o *Akorful v The State* [1963] 2 GLR 371
 - o *Kokomba v The State* [1964] GLR 616 direct jury on all relevant matters whether or not raised by defence
 - o *Boamah v The State* [1964] 112 the mere fact of alleged amnesia does not give the judge a right to raise the defence of insanity. Don't raise a defence which isn't based on the facts
 - o *Dogo Dagarti v The State* [1964] GLR 653 no evidence of automatism but the judge raised it
 - o *Sabbah v The Rep* [2009] SCGLR 728 where other defences are available, trial judge should direct jury accordingly
 - o *Collins alias Derby v The Rep* [1987-88] 2 GLR 521, CA repatriated borga accused of murder, he claimed he was being persecuted by the Jews because he was Jesus Christ; judge directed that accused was of sound mind which was prejudicial

December 3, 2013

TRIAL BY ASSESSORS

Forum for trial with assessors

- Only the HC tries with assessors
- They are used only in criminal cases or by specialised courts
- No assessor trial in any other case unless authorised by statute
- Relevant provisions are [Act 30 s227 – s229](#), [s230](#), [s243](#), [s260 – s264](#).

The trial by assessors is normally conducted by a judge sitting with at least 3 assessors – [s260\(1\)](#), [Act 30](#).

The accused person has a right to object to the empaneling of an assessor and the court has discretion to allow or refuse the sitting of the assessor.

Assessors are usually experts.

A peculiarity of this type of trial is that each assessor gives their opinion personally, separately and individually.⁴⁰

Responsibilities of the Judge at Assessor Trials

- The judge has to sum up for the assessors [he doesn't give directions]
- The summing up is on the facts and evidence only [not the law] – s281, Act 30; [R v Tawiah](#) (1949) 12 WACA 416
- The trial judge determines both the law and the facts by himself – [Mensah Gyimah v The Rep](#) [1971] 2 GLR 147, CA accused wrote a damning newspaper article condemning the border guards and accusing them of corruption. He was arrested and charged with criminal libel and sedition. In the course of the trial, an application was made by the case to be tried by jury. D.F. Annan ruled that he wouldn't allow the case to be tried by jury because it was too technical, he therefore proceeded with assessors. Secondly, the assessors empanelled all found the accused not guilty but the judge proceeded to convict him.
- He has to ascertain the opinion of the assessors
- He is not bound to accept the opinion of the assessors
- Only requirement is to take the opinion of the assessors into account
- Judge alone determines guilt or innocence of accused
- If convicted, judge alone passes sentence – s287(4), Act 30
- Fact and ratio decidendi
- Judge has to write a full judgment backed with reasons

Mode of trial is provided by s2, Act 30. See also [Abodakpi v The Rep](#) [2001-2002] 1 GLR 450, CA

⁴⁰ Only the foreman in a jury speaks [on behalf of the jury]

The decision whether or not the trial should be with assessors is a question of law, to be determined by the judge – *Mensah Gyimah v The Rep; Rep v Maikankan* [1972] 2 GLR 473, SC.

The determination of the mode of trial is at the discretion of the judge but subject to Constitutional provisions.

Whether the Trial should be with Assessors or Jurors – *s179, Act 30*

- On application by prosecutor
- On application of accused
- Court suo motu
- On application by the court for the opinion of the A-G in case there is uncertainty as to the mode of trial. The A-G has 15 days to reply or the judge will proceed as he deems fit.

Where a case should have been tried by assessors but is tried by jury, the error shall not be sufficient to vitiate the proceedings - *s404, Act 30*. The converse is also true as provided in *s405, Act 30*.

December 17, 2013

AUTHENTICATION & IDENTIFICATION

Authentication is the process of proving something to be true or genuine. It is also described as a process of showing that what a witness or party puts forward to the court is what it is. It's usually associated with identification, relevance and admissibility.

Identification is the process of satisfying the tribunal of fact of the characteristic features of what a witness or party puts before the court [*describing the object*].

Relevance is a matter so properly connected with the issue before the court so as to show that it's material and/or of probative value to the issue before the court.

Admissibility is the quality or state of being allowed to be received as part of the evidence in court proceedings or an inquiry.

Authentication normally covers demonstrative evidence including maps, photographs, site plans, drawings depicting scenes of motor accidents or scientific evidence.

Normally, the statutory provisions covering authentication is found in *s136 of NRCD 323*. Summarised as authentication depends on identification, relevance and admissibility.

Authentication in Practice

1. Witness will mount witness box
2. Tender the demonstrative evidence
3. Identify the demonstrative evidence i.e. describe essential characteristics of the item to be tendered

3 Processes of Authentication

1. Production

The witness will mount the witness box and present the evidence which s/he wishes to tender to the court.

2. Identification

Sometimes all the witness does is introduce/ refer to/ identify a concept, information or object and says that s/he's not tendering it but only wants it identified but another person will tender it formally. Where the info is tendered for identification purposes only, it's admitted and marked as ID 1, ID 2, etc. and no more.

Normally matters to be identified will be tendered later if not tendered immediately. When they are being tendered, the procedure is as follows:

- The person produces the evidence
- It's followed by identification of the evidence
- An announcement is made that the witness wishes to tender the evidence
- The judge will ask for the reaction of the opponent i.e. objection or admission
- Where there's no objection, it's admitted and marked numerically for the plaintiff or defence e.g. Exhibit 1, Exhibit 2, etc.
- Where the opposing party raises objection
 - The objection is raised
 - Grounds of objection stated including relevance, illegal evidence, evidence not genuine
 - The one tendering it will be asked to react to the objection
 - The court will rule on the objection and decide whether or not to admit it
 - If objection is sustained, item will be marked R1, R2, R3, etc
 - If the objection is overruled, item will be marked Exhibit A, B, etc. for P and 1, 2, 3, etc for D

3. Authentication

Authentication means what the proponent says it is what it is i.e. it connotes relevance, has a logical connection or logical relationship to the issue before the court.

This covers relevance and admissibility.

After the matter is authenticated, the court will rule on whether or not the evidence is admissibility.

Once admitted, the evidence will be evaluated for its probative value.

Admissibility by Tendering

Generally, a witness is required to speak on matters to his personal knowledge. Typically the maker (or his representative) of the evidence is in the best position to answer questions on the object. Hence this rule enables the court to get to the truth of the matter before it.

Grounds of Objections

- Improper foundation
- Lack of sufficient identification
- Relevance
- Authenticity

Authentication is subject to **s52 of NRCD 323.

Best Evidence Rule

This is a common law rule which affects authentication. It was enunciated for the first time in 1795 by Lord Hardwicke “*the judges and sages of the law have laid it down that there is but one general rule of evidence, the best that the nature of the case will allow*”.

This is codified in **s165 of NRCD 323**. It's to the effect that where the original of a document or evidence is available, a copy or secondary evidence of the original is unacceptable and inadmissible unless there exist really tangible reasons for the secondary evidence. It's applicable where the contents of the document or evidence have to be proved.

There are however several exceptions to the rule e.g.

- Where it's being tendered not to prove the contents but to show that it exists
- Where the original is genuinely lost – **s167**
- If the original is so huge or voluminous that it can't be taken to court

This principle affects authentication because although all the requirements of authentication may be satisfied, it may not be admitted based on the best evidence rule.

Methods of Authentication **s137 - s161**

- a. Authentication by admission – **s137**. Where the evidence is admitted authentication is taken for granted.

- b. Authentication by statute. Some statutes provide that certain docs are authentic and ought to be taken like that e.g. **CI 47 Or.38 r8(2)**; statutory statement i.e. statement given by an accused during the voire dire if signed by the magistrate – **Banful v Rep**.
- c. Authentication by testimony of witness with knowledge – **s138**. The common law position is that where a person gives an eye witness account that account is taken to be authentic – **s139**. This is subject to the condition that the person testifying doesn't not give opinion evidence or make inferences and deductions. Eye witness accounts are normally brought out in evidence in chief
- d. Authentication by non-expert opinion on handwriting – **s140**. It's established law that handwriting evidence by a person with knowledge of or familiar with style of writing by a disputed person may be authenticated. See: **Tackie v The State** [1964] GLR 262.
- e. Authentication by comparison⁴¹ by the court or witness – **s141**. Exceptions include there should be nothing suspicious by the comparison.

Per **s146**, a document which is described as an ancient document shall be authenticated if

- i. There is nothing suspicious surrounding it
- ii. it's found in a place where such documents are found
- iii. the document should have been not less than 20 years old

Authentication by process or system – **s147** – e.g. scanners, photocopy, computer printout.

Authentication by public reports and records – **s148** – this is subject to public custody.

Authentication by business records – **s149** – e.g. entries from bankers see **Appiah v Rep** [1987-88] GLR 377

- f. Copies of writing in official custody – **s162** – a copy of a writing is presumed to be genuine if it purports to be a copy of a writing which is authorised by law to be recorded or filed and has in fact been recorded or filed in an office of a public entity or which is a public record, report, statement or data compiled if
 - i. an original or an original record is in an office of a public entity where items of that nature are regularly kept; and
 - ii. the copy is certified to be correct by the custodian or other person authorised to make the certification provide that the certification must be authenticated.
- g. Copies of ordinary writing – it must be filed, custody provided that it's in an office of a public entity or place regularly kept, it's certified to be correct by custodian or person authorised. **Okudzeto Ablakwa v A-G** one of the basic issues was that government bungalows are sold with only cabinet approval the memo from cabinet presented as evidence was not signed, dated, didn't mention the location of the disputed property, etc.
- h. Presumed Authentication. The following may be regarded as authenticated by statute:
 - Attested writings – **s150**
 - Books, pamphlets and other public publications – **s151**

⁴¹ The original is always available for the comparison

- o Official law reports and treaties with other nations – s152
- o Maps made by a public entity such as official survey maps – s153
- o Provisions of the Constitution, Acts, decrees – s154
- o Reference books which bear no semblance of suspicion – s155
- o Newspapers or periodicals – s156
- o Acknowledged business marks or inscriptions of businesses – s157
- o Writings with the certification of a notary public – s158
- o Seals of government departments or agency or international public agency – s159
- o Domestic official signatures – s160
- o Foreign official signatures – s161
- o Copies of writings in official custody, subject to certain conditions stipulated in – s163

Authentication differs from admissibility. Evidence may be authenticated but may not be admitted

CIRCUMSTANTIAL EVIDENCE

Circumstantial evidence refers to facts from which may be inferred, presumed or deduced the existence, non-existence or proof of another fact. IOW, the fact from which the fact in issue may be inferred, deduced or concluded. It is however not proof of the fact itself.

“...evidence of surrounding circumstances which by undesigned coincidence, is capable of proving a proposition with the accuracy of mathematics” – **R v Taylor** per Lord Heward LCJ.

“It’s evidence that could indirectly link the accused to the crime” – **Frimpong alias Iboman v The Rep**⁴².

“Pieces of evidence if put together, made a strong case against the accused person...series of small threads and which when put together, made a very strong rope...when those were put together, there would make stronger, corroborative and more convincing evidence than direct evidence” – **Gligah & Atiso v The Rep**⁴³, SC.

Circumstantial evidence is utilised where direct evidence is not available or where direct evidence is not easy to obtain. In **Duah v The Rep**, the CA said that where the testimony of eyewitnesses was not available, the jury was entitled and indeed permitted to infer from those facts where the prosecution had proved other facts necessary either to complete the elements of guilt or establish innocence.

Circumstantial evidence is different from rumours or gossip. No amount of gossip or rumour mongering will suffice to constitute proof. It was stated in **State v Otchere** [1963] 2 GLR 463 that *evidence of rumours of the commission of a crime do not constitute evidence of the commission of a crime*. This was in response to rumours circulating in the country that the accused persons were complicit in the assassination attempt on Nkrumah.

It was further provided in **State v Ali Kasena** [1962] 1 GLR 144, SC that *“it is dangerous in jury cases to leave to the jury evidence which amounts to suspicion only as there is the fear that they may ‘put a multitude of suspicions together and make proof out of it’”*.

Uses of Circumstantial Evidence

1. To establish the identity of criminals⁴⁴.
2. To establish the quality or nature of the materials or substances involved in the commission of a crime.
3. To provide the basis for concluding on the motive for committing a crime where motive is relevant.
4. To corroborate evidence already advanced or yet to be established during the trial.

⁴² Appellants and others, armed with a gun and other weapons, robbed a house, forcibly removed some items and drove away a BMW car. Appellant had the number plates of the car changed and drove into hiding in his hometown. Appeal against conviction failed because SC held that there were pieces of evidence connecting the appellant to the offences with which he had been charged, including a confession statement.

⁴³ Police men allegedly raped a second hand clothes seller in a police store room, they denied the charges and claimed she was the gf of one of the policemen. Circumstantial evidence was a detailed description of the room where the alleged rape took place and the evidence of a medical officer that the victim had been raped by an erect organ. These were held to be sufficient circumstantial evidence to justify their conviction for rape.

⁴⁴ **Dogbe v The Rep** [1975] 1 GLR 118 circumstantial evidence was used to identify the accused person who was said to have had an opportunity to do the act as he had knowledge of circumstances enabling it to be done.

5. To determine the existence or otherwise of intent or knowledge.

Examples of Circumstantial Evidence⁴⁵

- Forensic report
- DNA results
- SMS
- Emails
- CSI results

Principles on the Use of Circumstantial Evidence

1. It should lead to the **irresistible conclusion** that the crime has been committed. IOW guilt is the only inference that can be drawn from the circumstances. In **Ametewe v The State** the argument by the defence that mens rea for the death of the bodyguard didn't exist and that the intention was to kill Nkrumah himself thus the accused was not guilty of murder was rejected and it was held that from the circumstances, there was intention to kill hence he's guilty of murder.
2. It should lead to the irresistible conclusion that the crime was committed by no other person than the accused. In **Duah v The Rep** the pathologist report showed that the angle and depth of the wound was caused by external force and could not have been self-inflicted as claimed by the accused. In **State v Brobbey & Nipa**, the accused person was alleged to have committed murder and circumstantial evidence adduced as to the car and weapon used showed that the accused committed the crime. However, during the course of the trial, it was found that another person had been charged with the commission of the same offence and the court had compelling evidence against that person too. the accused was thus released because there was doubt as to his guilt and the circumstantial evidence did not lead to but one conclusion which is the guilt of the accused.
3. It must be inconsistent with the innocence of the accused. IOW guilt is the only rational conclusion. Demonstrated in **State v Anani Fiadzo** where a father was convicted for killing his son based on circumstantial evidence – he was the last person seen with the child alive, he gave inconsistent stories iro the whereabouts of the child, etc.

Standard of Proof iro Circumstantial Evidence

At common law, it's proof beyond reasonable doubt.

In Ghana, the degree of proof required is stricter than proof beyond reasonable doubt and requires that the accused person's guilt should be established by circumstances that consistently and overwhelmingly impute guilt and exclude any other rational conclusion. IOW the circumstances should lead to one conclusion alone – **Collins alias Derby v The Rep** [*schizophrenic guy claiming he was Jesus Christ being persecuted; judge disregarded his mental state during summing up and convicted him for murder; on appeal, conviction changed to guilty but insane*].

⁴⁵ Set out in Frimpong alias **Iboman v The Rep**

The conclusion should be reasonably probable or rational even where there may be possible, remote or fanciful explanations.

Where the circumstantial evidence relied on is more consistent with innocence than with guilt, a conviction cannot be sustained – *Logan & Ano v The Rep.*

Where the circumstantial evidence may be interpreted to lead to the inference of guilt as well as innocence, the accused person must be acquitted – *Domena v COP* [1964] GLR 416; *Abbey v The State*. Accused was convicted for stealing on the sole fact that he was seen coming from a room where the stolen item was taken. His appeal was granted, SC held that “the evidence being entirely circumstantial, the law required a particularly high standard of proof”.

Intention

Knowledge or intention in committing offences is hardly manifested expressly. It is invariably inferred from surrounding circumstances, events or happenings which may cumulatively amount to circumstantial evidence.

Circumstantial evidence is admissible to prove intention or knowledge e.g. where the issues is whether intention is based on the defence of ignorance of the law or ignorance of fact. Contrast *Nyameneba v The State* and *Logan & Laverick v The Rep.* In the Nyameneba case, there was no mens rea to commit an offence based on how the members were using the ‘herbs of life’ because they genuinely believed in the potency and efficacy of the herbs. In Logan’s case, the cocaine had been concealed in a hole in the building and there was a book entitled Cocaine in the house – it is highly unlikely that the owner of the house did not know that there was cocaine in the house.

In *Kamil v The Rep* [2011] SCGLR 300, the SC ruled that “guilty knowledge was largely a matter of inferences from the circumstances and the merits of a particular case... A presumption from circumstantial evidence should be drawn against the accused only when that presumption follows irresistibly from the circumstances proved in the evidence... A conviction must not be based on probabilities or mere suspicion”

In *Dexter Johnson v The Rep*, where the deceased, who was carrying about US\$90,000, had left with the appellant and others to buy gold in Tarkwa but was found dead at Old Ningo, the SC found that conviction based on circumstantial evidence was quite usual.

Proof of Death by Circumstantial Evidence

Circumstantial evidence is admissible to prove death even where there is no direct evidence of the death or trace of the dead body. The jury must however be warned that the circumstantial evidence should lead to one and only one conclusion i.e. the person is dead and the accused was responsible for the death. This was applied in *Bosso v The Rep* [chopped up body in septic tank].

Lifestyle Evidence

It's an example of circumstantial evidence and is assumed to exist from the living circumstances of the individual. Where a person with no known or visible means of earning income commands a great deal of wealth, the investigator may sometimes assume that his lifestyle provides some evidence of criminal activity or underhand dealing.

It is however very difficult to prove that such a person has committed a crime by his lavish lifestyle.

As a rule, it's inadmissible because:

- a. The person may have legitimate explanation for the lifestyle and s/he is innocent until proven guilty;
- b. Admissibility may be prejudicial to the accused i.e. similar facts evidence and may be excluded by the trial judge in his discretion⁴⁶ – s52, NRCD 323.

January 14, 2014

PRESUMPTIONS

A presumption is what the court accepts as existing when primary or basic facts have been established.

When A and B exist, it can be presumed that C is also in existence

The primary fact has to be established first.

Presumption is different from inference which is a logical deduction of a fact from another established fact.

Conceptions on Presumptions

- a. Conclusive or irrebuttable
- b. Rebuttable or inconclusive or disputable
- c. Presumption of law
- d. Presumption of fact
- e. Presumptions raise evidential burden
- f. Legal burden
- g. Presumption is relative to the placing of onus of proof on a particular person in any given case
- h. Example with proof of death
- i. Presumption is not proof per se but a legal deduction from facts which are essentially circumstantial

Rationale for Presumptions

⁴⁶ Evidence describing accused as a 'drug baron' was expunged due to its prejudicial effect – *Bonsu alias Benjillo v The Rep.*

a. Public policy

When a married woman has a child, the law presumes that the child is the husband's. This is because public policy demands that children should not be unnecessarily bastardised.

b. Fairness

The conclusion must lead to fairness.

c. Probability

Occasionally the conclusion will be such that it is the only probable result from the circumstances depicted by the primary facts.

d. Saving judicial time

It saves the court time from going into matters which are too obvious to be disputed.

e. Solving dilemmas

If there is simultaneous death for instance, the law presumes that the older predeceased the younger.

Statutory Provisions on Presumptions

S18, NRCD 323

Presumption & Estoppel

Presumptions are similar to estoppel but there are differences.

Procedural

- Estoppel has to be pleaded
- Presumption doesn't have to be pleaded; it's a point of law and law is not pleaded

Timing of Conclusion

- Presumption appears at the inception of the trial
- For estoppel to be established evidence may have to be led during the trial and it's determined at the end of the trial or after the adduction of evidence.

In re Suhyen Stool; Wiredu & Obenewaa v Agyei & Ors [2005-2006] SCGLR 424 (in holding 3)

Where the basic facts that give rise to a conclusive presumption are found or otherwise established in the action, no evidence contrary to the conclusively presumed fact may be considered by the tribunal of fact"

Effect

- Presumption is the same as substantive law, you cannot change the law e.g. a man is presumed innocent until he pleads guilty or has pleaded guilty.
- Presumption cannot be contradicted by adducing evidence to the contrary.

Instances of Conclusive Presumptions

NRCD 323, s25 – s29

1. Facts recited in written instruments⁴⁷ – s25
Facts recited in documentary instruments are presumed to be true as between the parties to the instrument or their successors in interest – *African Distributors Ltd Co. Ltd v CEPS* [2011] 2 SCGLR 955
2. Estoppel by own conduct or statement – s26
3. Estoppel of tenant to deny title of landlord – s27
Presumption that landlord has title to the property in dispute.
4. Estoppel of licensee to deny title of licensor – s28
Presumption that licensor has a valid right to possession of the immovable property in dispute
- Antie & Adjuwah v Gbo* [2005-2006] SCGLR 494
5. Estoppel of bailee, agent or licensee – s29
Same principle applies unless a person with a better title than the licensor, landlord or principal.

Rebuttable Presumptions

It's a conclusion which must be made unless evidence is led to the contrary.

GPHA v Nova Complex Ltd [2007-2008] 2 SCGLR 806 described rebuttable presumption as “*conditional, inconclusive and disputable presumption*” and ruled further that “*the presumption has prima facie effect only and the presumed facts may be replaced by evidence...it imposes upon the party against whom it operates the burden of producing evidence and the burden of persuasion as to the non-existence of a presumed fact*”.

It's defined in s19 of NRCD 323

Evidence may be led to contradict a rebuttable presumption [*but no evidence shall be led to contradict a conclusive presumption*].

Use of “prima facie”

Instances of Rebuttable Presumption

1. Validity of marriage – s31
 - a. Celebration
 - b. Before witnesses

⁴⁷ Similar to parole evidence rule (i.e. you can't lead oral evidence to contradict a written document); as well as estoppel by deed

2. Legitimacy of children – s32
 - a. Presumption based on marital obligation for sexual intercourse
 - b. That it takes 9 months for a child to be conceived and born
 - c. Decree nisi and decree absolute
3. Presumption of death – s33
 - a. Chard v Chard [1956] P 259
4. Simultaneous death – s34
5. Ownership of legal title and beneficial title – s35
6. Regularity of official duties – s37
7. Intention and ordinary consequences of voluntary actions – s38
8. Judicial jurisdiction – s39
9. Innocence of the accused – Art 19(2)(c)
10. Receiving stolen property and the doctrine of recent possession – Act 29, s148
11. Sanity of accused persons

All persons are presumed to be sane.
12. Conflicting presumptions
 - a. If the presumptions are of equal status, they cancel each other
 - b. If one is of a higher status than the other, the one with the higher status will cancel the other.

January 21, 2014

ESTOPPEL

Refer to handout

January 28

OPINION EVIDENCE

Opinion evidence is based on the views, thinking or inference of a witness on the facts.

Personal Knowledge

It refers to what the witness knows; what he has perceived.

Generally, the law requires that a witness testify on matters within the witness' personal knowledge – s60 of NRCD 323.

Personal knowledge may include personal observation.

S60(3) of NRCD 323 allows people to make certain statements which are not based on personal knowledge without necessarily requiring proof of those statements e.g. age, place of birth, name.

Lay Opinion Evidence

It's opinion evidence given by a person who is not an expert.

Lay opinion is where matters require no special skill, knowledge, expertise or long experience is required.

It should cover matters which are not beyond the common experience i.e. matters within the competence of ordinary men.

Some types of evidence where lay opinion is commonly given is

- age;
- name;
- estimates of speed or distance [especially in traffic cases];
- emotional condition of a person;
- identification of persons, handwriting and objects;
- family history;
- reputation;
- existence of marriage; etc.

See: *Sherrard v Jacob* [1965] N1 151 list suggested by Lord McDermott

Any competent witness qualifies to give lay opinion.

Lay Witness

A person with no expertise who gives lay opinion evidence is referred to as a lay witness.

Admissibility of Lay Opinion

The general rule is that opinion evidence is not admissible. Thus, lay opinion is equally inadmissible⁴⁸. Rationale for inadmissibility: s2(1) & (3) of NRCD 323.

Since it's not easy to distinguish fact from opinion, the law allows lay opinion to be admitted in some cases. This is provided in s11 of NRCD 323 as follows:

1. the opinion concerns matters perceived, saw or made by the witness;
2. the opinion is helpful to the witness to clarify the witness' testimony; and
3. the opinion is helpful to the court in resolving the issues i.e. it has probative value.

The basis of the witness' opinion need not be disclosed.

Opinion evidence is subject to s60(4) & s112 of NRCD 323.

EXPERT EVIDENCE

Definition is provided in s112 of NRCD 323 and s121 of Act 30.

An expert refers to a person who is skilled or has specialist knowledge on the subject of his testimony. An expert gives opinion evidence based on inference or deductions.

S67 of NRCD 323 deals with qualification of an expert:

Expertise may be by learning or training – *Osei v The Rep* [1976] 2 GLR 383, CA

Expertise may also be obtained informally by experience – *R v Silverlock* [1894] 2 QB 766 *a solicitor claimed to be a handwriting expert and found to be an expert by the HL.*

Formal training is not always a necessity – *Tackie v The State* [1964] GLR 262, SC *man held to be a handwriting expert because he compared two writings.*

In situations where highly technical knowledge is required, technical knowledge would be required – *R v Inch* (1989) 91 Cr App R 377 *medical orderly held not to be an expert to tell the nature of a wound and that a proper doctor was required.*

Competence affects weight and not admissibility. The decision on whether a witness is an expert rests with the judge and is a matter of law

Assignment

Determine whether the ff qualify as expert witnesses:

- Galamsey operator when talking about carats in gold

⁴⁸ Opinion capable of being formed by the judge and/or jurors thus not allowed in order not to waste the court's time. Additionally, matters of fact are determined by the jury/judge and not witnesses thus don't need someone to come tell the court.

- Anloga carpenter to determine quality of wood
- Bogoso farmer
- Chorkor fisherman on fish

The subject of the testimony of an expert is found in **s112 of NRCD 323**.

- The subject matter should be beyond common experience
- Opinion must relate to the subject in issue before the court
- Opinion should assist the court to determine the issues before it
- If the witness can give general technical background information⁴⁹

The basis of expert opinion is found in **s113 of NRCD 323**.

- Matters perceived by him because of his expertise
- Matters assumed by him to be true for the purpose of giving his opinion or inference.
- Basis of opinion need not be admissible evidence. Thus, expert opinion may be based on hearsay.

Court appointed expert

The court is allowed to appoint an expert – **s114**.

- Appointment is by the parties but if the parties don't, the court does the appointment.
- The parties submit interrogatories for settlement of issues.
- Payment of the court expert is done by the parties on a pro rata basis.
- When the report is ready, it shall be presented to the court.

Ultimate Issue

At common law, the expert is not allowed to testify on the issue the court has to decide. This commonlaw position has been reversed in **s115**.

Effect of Expert Evidence

- They give evidence and don't decide cases
- In handwriting cases, the court is entitled to examine the handwriting and come to its own conclusion
- The opinion of the expert is not binding on the court
 - o **State v Lawmann** [1961] 698
 - o **Fenuku v John Teye** [2001-2002] SCGLR 985
 - Judge need not accept any of the evidence offered

⁴⁹ Based on case law

- Expert evidence is only a guide
- o *In re Agyekum (Decd)* [2005-2006] SCGLR 851

HEARSAY EVIDENCE

In common parlance, hearsay means rumour or gossip. In law, it's a declaration, statement or utterance made before the current court which is offered to prove the truth of its contents. Such declaration may be made by a witness, by the party or by others.

Ofori Boateng defines hearsay evidence as evidence of any oral or written expression or conduct meant as a substitute for an oral or written expression made out of court and offered to prove the truth of the matter stated.

In **s116(c) of NRCD 323**, hearsay evidence is defined as evidence of a statement, other than a statement made by a witness while testifying in the action at the trial, offered to prove the truth of the matter stated.

As a rule hearsay evidence is inadmissible – **s117**. For instance such a statement may be influenced by inaccurate narration or recollection of the declarant or even the unreliability of the documents in support of it. Hearsay testimony is also not admissible because typically, the declarant or the maker of the pre-trial statement is not in court for his veracity or the veracity of the statement he made to be tested.

Because the witness did not perceive the matter spoken of, the witness may not know whether the declaration was true or false.

Rationale for Inadmissibility

1. Want of opportunity to determine the credibility of the declarant by cross examination. In **Re Blay-Miezah (decd)** [2001-2002] SCGLR 339, it was held that **evidence which is not cross-examined upon is “totally-worthless”**.
2. Want of opportunity to determine the credibility of the declarant by observation of his demeanour.
3. Want of opportunity to determine the credibility of the statement itself. Thus if the statement is disputed, the declarant is not present in court to be confronted with alternative versions which could be equally plausible or perhaps more probable.
4. Want of opportunity to hold the declarant for perjury if his statement was deliberate untruth.

Qualification as Hearsay

1. The statement should be made outside the case on trial and prior to the current hearing wherein the witness is testifying.
2. It should be made by a person testifying during the trial of a case or by someone with community of interest with the person testifying or by some other person. If the witness is also the declarant and seeks to rely on it in court, he may be cross-examined on it. There are however exceptions to this principle.

3. It should be the statement of a declarant who is unavailable to testify. It may also be a statement from previous proceedings.
4. It must be a statement which has been defined as an “oral or written expression or conduct of a person intended by him as substitute for oral or written expression”.
5. It should have been made to establish the truth of the statement. To the question “for what purpose was the statement made at trial?” the answer should be to show that a statement was made but not to prove the truth of the statement.

Admissibility of Hearsay Evidence

Generally, hearsay evidence is inadmissible. Thus if it's ruled that a statement is hearsay, it cannot be admitted in evidence during a trial.

It is however provided in **s117⁵⁰ of NRCD 323** that hearsay evidence may be admitted where the following provide for its admission:

1. NRCD 323
2. Other enactments
3. Agreement between the parties to the case

The provision in s117 is given judicial backing in the case of **Edward Nasser & Co Ltd v McVroom** [1996-97] SCGLR 468.

In the case of **In re Wa Na; B.K. Adama (substituted by) Issah Bukari v Yakubu Seidu** [2005-2006] SCCGLR 1088 it was held that notwithstanding the generality of s117, hearsay evidence could be admitted to establish the truth of hearsay statement in chieftaincy proceedings because the Chieftaincy Act, 1971 (Act 370) in s24(1) {replaced by s31(1)⁵¹ of Act 759} allows hearsay evidence to be admitted in such proceedings.

Exceptions to Admissibility of Hearsay Evidence

1. First hand hearsay evidence

S118 of NRCD 323 provides the conditions under which first hand hearsay evidence will be made admissible.

⁵⁰ **S117**: hearsay evidence is not admissible except as otherwise provided by this Decree or any other enactment or by agreement of the parties

⁵¹ **Act 759, s31(1)**: A judicial committee may receive in evidence any matter including hearsay which tends to prove or disprove a fact relevant to the subject matter before the committee.

- a. The hearsay evidence should be such that when offered by the declarant during the trial, it would not itself have been hearsay evidence. IOW the statement should come from the personal knowledge of the declarant and not from another person or source.
- b. The declarant should be unavailable to be called as a witness or where the declarant is available, he should be in a position to be legally cross-examined if he desires. Consequently, where declarant can claim privilege, hearsay evidence from that declarant will be inadmissible.
- c. Hearsay evidence will be admissible if the party offering it has given reasonable notice to the court that he intends to rely on hearsay evidence at the trial.
- d. Hearsay evidence which is otherwise admissible where notice is given to the court will be inadmissible if the accused objects to it.
- e. Where hearsay statement is offered by the accused in a criminal trial, it will not be admissible unless the accused is subject to cross-examination.
- f. Where the declarant is unavailable as a witness because of the wrongdoing of the proponent of the statement for the purpose of preventing the declarant from attending or testifying, the hearsay evidence will be inadmissible, even if s118 allows admissibility. Conversely, where the person's unavailability is not caused by the proponent of the statement, hearsay evidence will be admissible under s118.

See:

Pieterse v Amankrah [1982-83] 1 GLR 785

Rep v Accra Circuit Court; Ex P Appiah [1982-83] GLR 276 admissibility of documents emanating from Barclays in England was challenged on the ground of hearsay. It was held that the bank was a declarant in this instance and was unavailable to testify as a witness so was unavailable in terms of s116(1)(e). Consequently the docs were properly admitted as first hand hearsay and per s168 were admissible to prove their contents.

2. Admissions

S119 of NRCD 323 provides that evidence of a hearsay statement is not made inadmissible by section 117 if the statement is offered against a party, and—

- a. the declarant is a party to the action either in his individual or representative capacity, or
- b. the party against whom it is offered has manifested his adoption of, or his belief in the truth of, the statement, or
- c. the party against whom it is offered had authorised the declarant to make a statement concerning the subject matter of the statement, or
- d. the declarant was an agent or employee of the party against whom it is offered and the statement concerns a matter within the scope of the declarant's agency or employment and was made before the termination of the agency or employment, or

- e. the declarant made the statement while participating in a conspiracy to commit a crime or civil wrong and in furtherance of that conspiracy.

See [Admissions](#)

3. Confessions

It is provided in **s120 of NRCD 323** that a confession is admissible as hearsay evidence if it's made

- a. voluntarily by the accused person and
- b. in the presence of an independent witness other than the police or a member of the armed forces approved by the accused

The independent witness must understand the language of the accused as well as the language in which the statement is made⁵². Where the statement is in writing, the independent witness must certify in writing that the statement was made voluntarily in his presence and that the contents were fully understood by the accused.

Where the accused is blind or illiterate, the independent witness shall read over and explain the contents to the accused before it is signed or marked by the accused and shall certify in writing on the statement that he had read and explained the contents to the accused who had appeared to understand it before appending his mark/sign.

In a criminal action tried by a jury, a party may not offer to prove the hearsay statement under s120 in the presence of the jury. Where a party offers to prove hearsay evidence made under s120, the jury will be excused and the judge will make a decision on its admissibility by conducting a mini trial or *voire dire*. Where the judge rules that the hearsay statement is admissible, it does not preclude the jury from determining that the statement is not to be believed.

See [Confessions](#)

4. Former testimony

Former testimony refers to evidence obtained in proceedings or on a deposition other than the one in which the witness or party is testifying.

S121 of NRCD 323 provides that *“evidence of a hearsay statement is not made inadmissible by section 117 if it consists of testimony given by the declarant as a witness in an action or in a deposition taken according to law for use in an action, and when the testimony was given or the deposition was taken the declarant was examined by a party with interests and motives identical with, or similar to, the party against whom the evidence is offered in the present action”*. The conditions may be broken down thus:

In respect of a trial:

- (a) The witness or party in the current trial should have the same or identical interest with the declarant in the earlier statement.
- (b) The party in the previous suit should have had an opportunity to cross-examine the declarant in that suit if he so desired.

⁵² **R v Grunshie** – the alleged independent witness did not understand the language of the accused person

In respect of a deposition:

- (c) There should have been out of court examination of witnesses or parties by the court⁵³

In criminal proceedings, evidence may be taken under s124⁵⁴ of Act 30 before the trial but after the accused has been charged. Evidence may also be taken in indictable trials under s126⁵⁵ and s194⁵⁶ of Act 30. Act 30, s200 also provides that “*if on the application of the prosecution or the accused it appears to the District Court conducting the preliminary hearing or trial Court that a particular witness will not be available at the trial, the Court may, if it is satisfied that it would be in the interest of justice so to do, take the evidence of the witness and cause it to be recorded. Such evidence may be read as evidence in any Court although he is not called as a witness*”⁵⁷.

5. Past recollection – s122
6. State of mind – s123
7. Res gestae – s124

It’s a Latin expression which literally means ‘things done’. it’s made up of the acts or omissions representing intentions, remarks or observations of events so bound up or connected with the main events that they may be said to have been admitted to be part of the main events and are therefore admissible.

Under s124, it’s provided that evidence of a hearsay statement is not made inadmissible by s117 if the statement was made

- a. While the declarant was perceiving the event or condition which the statement narrates or describes or explains or immediately thereafter; or
- b. While the declarant was under the stress caused by his perception of the event or condition which the statement narrates or describes or explains.

These conditions need to be satisfied in order for a statement to form part of res gestae

1. *Contemporaneity or spontaneity of the statement*

The statement should have been made while the event was actually taking place. Consequently, evidence of tape recordings, video and CCTV recordings of relevant past events are held admissible in evidence.

⁵³ The evidence is admissible because the parties have an opportunity to cross-examine the witnesses during the making of the out of court statement

⁵⁴ Act 30, s124(1): Whenever the High Court or a Circuit Court is satisfied that the examination of a witness is necessary for the ends of justice, and that the attendance of such witness cannot be procured without such delay, expense, or inconvenience as, in the circumstances of the case, would be unreasonable, the Court may dispense with such attendance and issue a commission to any District Magistrate, within the local limits of whose jurisdiction the witness resides, to take the evidence of the witness

⁵⁵ Act 30 s126: (1) The parties to any proceedings under this Code in which a commission is issued may respectively forward any interrogatories in writing which the Court directing the commission may think relevant to the issue, and the District Magistrate to whom the commission is directed shall examine the witness upon such interrogatories. (2) Any such party may appear before the Magistrate by counsel, or in person, and may examine, cross-examine, and re-examine (as the case may be) the said witness.

⁵⁶ Act 30, s194: Whenever it appears to any Judge or Magistrate that any person dangerously ill or hurt, and not likely to recover, is able and willing to give material information relating to any offence triable on indictment the Judge or Magistrate may take in writing the statement on oath or affirmation of that person and shall subscribe it, and certify that it contains accurately the whole of the statement made by that person, and shall add a statement of his reason for taking the statement and of the date and place when and where it was taken, and shall preserve the statement and file it for record.

⁵⁷ It’s admissible because the parties get a chance to cross-examine the declarant.

The time gap after the event may result in the evidence not being held to contemporaneous to form part of the *res gestae*. In *Dua v The Republic*, the statement of the accused person to his uncle that he had killed his wife was held not to form part of the *res gestae* because it was not contemporaneous enough to the time of death to form part of the *res gestae*. In *Ratten v R* [1972] AC 378 a man accused of murder claimed he killed her accidentally when the gun he was cleaning went off. However, a telephonist testified that around the time of the shooting, a woman called the telephone exchange sobbing and hysterically asking for the police. The evidence of the telephonist was admitted as showing a state of emotion or fear as a result of existing or impending emergency. The PC held that the evidence was rightly admitted although it was hearsay evidence.

In *R v Bedingfield* (1879) 14 Cox C.C. 341 a woman rushed with her throat cut out of a room in which the injury had been inflicted into another room where she said to persons who saw her enter “*see what Bedingfield has done to me*”. Their evidence about what she said was ruled inadmissible by Cockburn CJ.

2. *It should be made immediately after the occurrence*

Where the statement was not made at the same time that the event occurred, it should have been made “immediately after” the occurrence of the event. In the case of *Tepper v R* [1952] AC 480 the accused was charged with maliciously setting fire to a shop with intent to defraud. The prosecution called a witness who deposed that after hearing the fire alarm he heard a woman's voice shouting: “Your place burning and you going away from the fire”, and immediately afterwards he saw a car being driven away by a man resembling the appellant. The words were spoken some 220 yards from the site of the fire and about twenty-six minutes after the fire was started. The evidence was held to be inadmissible and the PC said that the event must have been “so closely associated with the statement in time, place and circumstances that they are part of the thing being done”. The closeness of time should be such that the declarant has no time to reflect on what to say or do or what not to say or do.

In *R v Gibson* the prosecutor gave evidence in a criminal trial that, immediately after he was struck by a stone, a woman going past, pointing to the prisoner's door, said: “The person who threw the stone went in there.” This evidence was not objected to at the trial, but it was admitted by counsel for the prosecution in a Case Reserved that the evidence was incompetent. The conviction was quashed on the ground that although the words were closely associated in time and place with the event, the assault, they were not directly connected with the event itself. They were not words spontaneously forced from the woman by the sight of the assault, but were prompted by the sight of a man quitting the scene of the assault and they were spoken for the purpose of helping to bring him to justice.

3. *The stress of the event should be operating on the mind of the declarant*

The statement must have been made while the stress of the event or the statement was still dominating the mind of the declarant as in the case of *Ratten v R* (supra). In *GPHA & Capt Zeim v Nova Complex* [2007-2008] 2 SCGLR 806 an admission by the captain that he had beached the ship wrongly made 24 hours after the event was held to form part of the *res gestae* because the event was still operating on his mind when he made the declaration. The SC refused to disturb the findings of the lower court, holding that the requirement for contemporaneity was to prevent fabrication or reduce the event to mere narrative. Whether or not an issue is *res gestae*

is to be left entirely to the adjudicator of facts who shall determine the critical issues given the event in question, the declarant who made it, the nature of the statement, the time line or proximity between the event and the making of the statement and rule on its admissibility or otherwise.

4. *Explanatory situations*

It's possible for a statement to be admitted in evidence even where it's not an expression of an emotional or stressful state of mind. IOW, even where there is no evidence of stress, a statement which explains why the declarant acted the way he did may be admissible. In *R v Gilfoyle* [1996] 1 Cr App R 302 the suicide notes written by the wife were held to not express her state of mind per the testimony of the witnesses.

Dying Declaration

Dying declarations are utterances made by the declarant while in the throes of death but which is relevant and closely connected to the event. At common law, the rule is that the declarant should be at the point of death or should have given up any hope of living when he made the statement.

In *R v Jenkins* (1869) L.R. 1 CCR 187 a written declaration of the deceased was put in evidence for the prosecution in a trial for murder. The declaration was made on oath to a magistrates' clerk, about 13 hours before death. The clerk asked the deceased before he took down her statement, whether she felt she was likely to die? She said, "*I think so, from the shortness of my breath.*" Her breath was then extremely short. The clerk said, "is it with the fear of death before you that you make these statements, and have you any present hope of your recovery?" - She said, "None." The clerk then wrote out her statement, and added to it the above conversation, in the form of a statement by the deceased, but he omitted the word "present" before "hope." He then read over to the deceased what he had written, and she then added the words "at present" before "hope," and signed the declaration. Held, that the statement was not admissible in evidence, as it did not appear to have been made under a settled hopeless expectation of death, inasmuch as the deceased had expressly qualified the words "no hope," by inserting before them the words "at present."

NRCD 323 is silent on the issue of dying declaration being part of *res gestae*. However, it can be deduced that where a person is so stressed by a situation that his utterances are contemporaneous with the occurrence of the event, it should not make any difference whether or not the person is in fear of imminent death. At worst, dying declaration should be admitted under s118 as first hand hearsay for the reason that the declarant is unavailable as a witness.

Criteria for determining *res gestae*

- Whether the event was so spontaneous as to rule out any possibility of fabrication or concoction
- Whether there was any opportunity for the declarant to have fabricated the statement
- Whether the utterances were the instinctive reaction of a distressed person

8. Business records – s125

9. Official records – s126
10. Judgments – s127
11. Family history – s128
See TRADITIONAL EVIDENCE.
12. Boundaries and community history – s129
13. Deeds and ancient writings – s130

Hearsay evidence should not be tendered to prove the truth of the statement else it is inadmissible

February 4, 2014

PRIVILEGES

It's an exceptional or special right, immunity or exemption by which a person may refuse to give a fact/evidence/statement or disclose a fact or prevent others from doing so.

Rationale for Privileges

1. Protection of public policy
2. Sustenance of inviolability of individual human rights
3. Protection of the sanctity of certain socially valued confidential communication.
4. Maintenance of justice in the society

Normally, privilege is used by a party to prevent the party from answering a question or produce an object or document.

Scope of Privileges – s88

In Ghana, privilege is said to apply to all proceedings, including judicial, administrative, formal and informal inquiries, investigations including police investigations, etc.

Waiver of Privileges

The general rule is that the person who has a privilege can waive it.

If two people have joint privilege, the rules are different.

Determination of Privilege – s91

The judge determines privilege, not the jury, because it's a matter of law.

Burden of Proof

The proponent or the party relying on the privilege has to prove the assertion. When this is done, the onus shifts to the party disproving it.

Forms of Privilege

Generally, they take two broad forms

1. Public interest immunity claims to privilege
2. Public policy immunity claims

Public interest immunity claims

a. Lawyer-client privilege

A lawyer is privileged from disclosing what transpired between the lawyer and his client and vice versa.

Exceptions

- i. If the consultation is to plan or commit a crime
- ii. Where two people are claiming privilege and one of them is dead
- iii. Allegation of breach of duty by a lawyer or by client
- iv. Where the lawyer witnesses the execution of a document and issues arise on formalities, communication of relevant matter of common interest of the document, etc

Qualification for this privilege

- i. The lawyer should qualify to enrol as a lawyer under **s3 of Act 32**
- ii. Be enrolled as a lawyer
- iii. Obtain a solicitor's licence
- iv. Entitled to practice as a lawyer

Akuffo-Addo & Ors v Quarshie-Idun & Ors⁵⁸ [1968] GLR 667

Rep v HC (Fast Track Division) Accra; Ex P Justin Pwavra Terwajah (unreported) 11/12/13 a *lawyer objected to the appearance of opposing counsel because he didn't have a valid solicitors' licence and the judge upheld it. The SC held that the judge was right and went further to say a lawyer cannot sign a letter as a lawyer if the lawyer doesn't have a solicitors' licence.*

Applicability of this privilege

- i. It must be in relation to professional communication
- ii. The communication should relate to matters of advice in the nature of preparation to go to court or to prosecute/defend a case
- iii. Must be claimed by the client or his personal rep or guardian

b. Privilege not to be compelled to testify

When a party is charged with a crime, the person cannot be compelled to testify – **Art. 19(10)**⁵⁹; **NRCD 323, s96(1)**⁶⁰.

c. Privilege against self-incrimination

⁵⁸ It was held that a lawyer who does not have a solicitors' licence should not be granted audience in the courts

⁵⁹ No person charged with a criminal offence shall be compelled to testify at the trial

⁶⁰ Accused person in a criminal action cannot be compelled to testify

A person has a right to refuse to answer a question or give a statement which will put that person into trouble with the law or where an also may lead to a real danger of prosecution – s97(1) of NRCD 323.

Exceptions

- i. Where the privilege is raised on behalf of others, it will not be accepted⁶¹.
- ii. Where the court wants orders made for the examination of the body to demonstrate identification
- iii. Where samples of body fluids for analysis is required
- iv. Where the report is such that a person with superior right is the one required to disclose it.
- v. Where the applicant does not have permanent immunity against disclosure i.e. permanency of the immunity can be attacked.

Privilege in civil cases

In Or.22 r4 of C.I. 47, where a person objects to answering any interrogatory on the ground of privilege, the person may state the objection in the person's affidavit in answer.

Or.22 r1 & r6

Or.29 r9

Or.11

d. **Privilege in respect of mental treatment** (sometimes called medical treatment)

S103 provides for this and it applies to only 2 diseases:

- i. Mental diseases
- ii. Emotional disease

Where a psychologist, physician or person assisting him treat a person for mental disease or emotional disease, the physician or psychologist can claim this privilege to prevent the disclosure of what transpired between them. The person who is treated can also claim this privilege.

The rationale behind this is to prevent stigmatisation.

e. **Privilege on Religious advice**

Provided for in s104(1). Confidential communication to a professional minister of religion who is prevented by the code of the profession from disclosing such communication is privileged from disclosure.

f. **Privilege on compromise**

Where people attempt to settle a case, whatever goes on there is privileged from disclosure – s105 of NRCD 323.

Rep v Bonsu; Ex P Folson [1999-2000] 1 GLR 523

COP v Sem [1962] 2 GLR 77 at 81

⁶¹ It can't be said that giving the statement will put your husband in trouble

Public Policy Immunity Claims

- a. State secrets
- b. Privilege against disclosure of informants

It's only available to the government – s107. The rationale is to ensure that information on criminal information do not run out.

- c. Privilege on trade secrets
- d. Privilege on marital communication

The spouse of the accused is not a compellable witness even when the accused has been charge with a grievous offence and the spouse is the only witness. The rationale is to protect the sanctity of marriage.

There should be an intention that the communication should not be disclosed at the time it was made in order for that communication to be qualified as privileged information.

TRADITIONAL EVIDENCE

Judicial Pronouncements on Traditional Evidence

“By its nature, traditional evidence is hearsay evidence. It is evidence of the history of events which happened some time past, concerning a person’s pedigree, origin, migration, land, family, stool, etc. passed on generally by oral tradition from generation to generation” – *In re Asere Stool: Nikoi Olai Amontia IV (substituted by Tafo Amon II) v Akotia Oworsika III (substituted by Laryea Ayiku II)* [2005 – 2006] SCGLR 637.

In *Ricketts v Addo (consolidated)* [1975] 2 GLR 158, CA the court held that *“traditional evidence in causes relating to pedigree, inheritance, boundaries of land and family land transactions, etc. was admissible as an exception to the hearsay rule. The relator of such evidence is entitled to testify not only on matter occurring before his birth but also to matters which had happened during his time”*.

- *It’s hearsay evidence*
- *It relates to matters of past events hence happened out of court*
- *It concerns family, clan, tribe, pedigree, migration, land*
- *The events are all presented orally*
- *Traditional evidence is an exception to the hearsay rule*

Statutory Provisions on Traditional Evidence

- **NRCD 323, s128** makes admissible birth, marriage, divorce, relationship by blood, ancestry or similar facts of family history
- **S129** contains rules on the admissibility of traditional evidence relating to boundaries and community history
- **S128(2)(b)** talks about family history by a non-member of the family⁶²
- **S48** emphasises possession and ownership as evidence iro traditional history

In what appeared to be an elaboration of what constitutes traditional evidence, the SC stated in holding 1 of *Hilodjie v George* [2005-2006] SCGLR 974 that: *“therefore, findings and decisions of courts may appropriately qualify as evidence of facts in living memory. But evidently in land litigation, proven uninterrupted and unchallenged acts of possession, in the absence of some cogent evidence on record to the contrary, as for example, an unreserved acceptance of crucial parts of the other side’s oral history, cannot be ignored or denied the deserved weight, given that in the first place, by the clear provision of s48 of NRCD 323, such acts raise a presumption of ownership”*.

Evaluation of Traditional Evidence

⁶² It’s in recognition of the fact that Ghanaians live communally

The Privy Council held in *Adjeibi-Kojo v Bonsie*⁶³ [1957] 3 WALR 257 that “*the most satisfactory method of testing the traditional history is by examining it in the light of such more recent facts as can be established by evidence in order to establish which of two conflicting statements of tradition is more probably correct*”.

Where there are conflicting histories, test the historical evidence with facts of modern life to determine which is true

Application of Adjeibi-Kojo v Bonsie Principle

1. Where **the court is in doubt** and not where one side has been taken – *In re Tahyen & Assago Stools; Jumanin II v Anin* [1988-89] SCGLR 399;
2. Where there is a conflict of traditional history the best way to find out which side is probably right is by **reference to recent acts** in relation to the land. In the instant case the fact that the plaintiff is in possession of the land, and is acknowledged by his boundary owners to be the owner is enough to prove that his evidence of tradition is probably right – *Kwesi Yaw v Kwaw Atta* [1961] GLR 513; *Hilogie v George* [
3. “The best way of evaluating traditional evidence was to test the authenticity of the rival versions against the background of **positive and recent acts** – *Achoro v Akanfela* [1996-97] SCGLR 209
4. Where it was difficult on the basis of traditional evidence for the trial court to make a finding as to which of the ancestors of the parties was the first to settle on disputed land, the recommended approach was to have recourse to **facts in recent years** as established by the evidence. And a party...could still succeed in an action for declaration of title, even if his traditional evidence had been rejected” – *Adwubeng v Domfeh* [1996-97] SCGLR 660.
5. Facts established by matters and **events within living memory**, especially evidence of acts of ownership and possession, must take precedence over mere traditional evidence – *Adjei v Acquah* [1991] 1 GLR 13.
6. “Since the parties had proffered conflicting traditional evidence in support of their respective claims, the law required that **recent events** supporting the claim of either party should sway the determination of the dispute. Thus the evidence of traditional history tested against recent events, relied on by both the Kumasi Traditional Council and the National House of Chiefs in preferring the defendant’s version of the founding of the Krobo Stool, was amply supported by the totality of the evidence on record” – *In re Krobo Stool; (No.1); Nyamekye (No.1) v Opoku* [2000] SCGLR 347.
7. “In was not disputed that the roots of title of the parties was founded on traditional history, events dating as far back as a conquest in 1690 by the Labadis...or settlement under an Ogbojo tree in 1730 or thereabouts...the evidence of the defendants was buoyed by acts of ownership like grants of lands to strangers covered by exhibits...While these per se would not confer ownership or title on the grantors, they would go a long way to buttress a claim of title to the land granted. Evidence of recent acts of ownership by the plaintiff was nil, or if any at all, insignificant and not of any weight...” – *Ago Sai and Ors v Kpobi Tetteh Tsuru III* [2010] SCGLR 763.

⁶³ Locus!!!! EXAM!!!!

Where there is a conflict in the history

Where the court is in doubt

Relate traditional evidence to acts in recent years

Relate traditional evidence to events within living memory

In evaluating traditional evidence, impressions and demeanour of witnesses are not relied upon to determine the truth of the submission – *In re Tahyen & Assago Stools; Kumanin II* (substituted by) *Oppon v Anin* [1998-99] SCGLR 399. This principle is also supported by *Adjeibi-Kojo v Bonsie*.

Generally, determination of traditional evidence is based on accepted, undisputed facts – *Beng v Poku* [1965] GLR 167.

Where the traditional evidence is conflicting and the recent events to be relied on are also conflicting, *In re Kodie Stool; Adowaa v Osei* [1998-99] SCGLR 23 provides that the court must sift and weigh the respective testimonies to see which outweighs the few clearly established facts.

Onus of Proof

Where it appears that the evidence as to title was mainly traditional in character on each side and there was little to choose between the rival conflicting stories, the person on whom the onus of proof rested must fail in the decree being sought for – *Kodilinye v Odu* (1935) 2 WACA 336; *Abakam Effiana Family v Mbibado Effiana Family* [1959] GLR 326; s17(1) of NRCD 323.

Where the admission of one party establish[es] that the other party had been in long undisturbed possession and occupation of the disputed property, the party making the admission assumed the onus to prove that such possession was inconsistent with ownership. The principle is that such a person in possession and occupation is entitled to the protection of the law against the whole world except the true owner or someone who can prove a better title. This is the basis of the presumption in s48 of NRCD 323.

There are no static rules...different facts decide different cases and therefore what may amount to facts of recent events may differ from case to case.

Failure of Traditional Evidence

“A party could still succeed in an action for declaration of title even where the traditional evidence has been rejected” – *Adwubeng v Domfeh*; *In re Taahyen*.

In re Adjancote Acquisition; Klu v Agemang II [1982-83] GLR 852 contains a summary of the principles *supra*.

February 18, 2014

EVIDENCE IN APPELLATE PROCEEDINGS

Appeal is the procedure for bringing the decision, judgment or order of a lower court or tribunal to a higher court to be corrected on the ground that it was made in error.

The primary object of appeal is the correction of errors made at the trial.

Trial courts are

- o High Court
- o Regional Tribunal
- o District Court
- o Judicial Committees of chieftaincy institutions
- o Committees or Commissions vested with adjudicatory powers/judicial powers

The appellate courts are:

- o High Court
- o Regional Tribunal
- o Court of Appeal
- o Supreme Court

Statutes Governing Appeal

Appeals are creatures of statute:

In Re Okine [1960] GLR 8, CA

Nye v Nye [1967] GLR 76 “there is no inherent right of appeal in a litigant, nor indeed is there an inherent power in any court to hear appeal. Both the right and power are creatures of statute and unless the enactment creating the right of appeal and the power to hear the appeal is explicit, clear and unambiguous in its language, no such right and no such power can ever materialise.”

In **Re Yendi Skin Affairs; Yakubu v Abdulai** [1984-86] 2 GLR 226 “an appeal is a creature of statute and if the statute did not give the right of appeal that was the end of the matter”.

Bosompem v Tetteh Kwame [2011] SCGLR 397 “it is well settled that an appellate court has no inherent jurisdiction to entertain an appeal except as conferred by statute”

Supreme Court

- 1992 Constitution
- CI 16 (Parts II & III)
- Act 459 s31 – s34
- NRCD 323 s5

Court of Appeal

- 1992 Constitution, Art 137

- CI 19
- Act 459 s11, s31 – s34
- NRCD 323 s5

High Court

- Act 459 s51 – s54
- NRCD 323 s5
- Act 30 Part II as amended
- Art. 140(1)
- CI 47
- Act 633 and Act 459 s31 – s34, s21 as amended by Act 620

Regional Tribunal

- Art. 143(2) & (3)
- Act 459 s24
- NRCD 323 s5

Appeals from CC in civil matters go to the CA under Act 620 s44(1).

Appeals from CC on criminal cases go to the HC under Act 620 s44(2)

Appeals from the DC go to the HC under Act 459 s15(1) and s21(3) as amended by Act 620 for civil cases. Criminal appeals are regulated by Act 620 in s21(1). Interlocutory appeals from the DC are regulated by s21(3) of Act 459 as amended.

Act 30 s406 provides for appeal against sentence in the HC, CA and SC.

Judicial committees of Traditional Councils go to the judicial committee of the Regional House of Chiefs.

Appeals from the RHC go to the NHC and further appeals lie to the SC.

Subject Matter of Appeals

In civil matters, appeals are against decisions, judgments, rulings and orders.

In criminal matters, appeals are against convictions, acquittals, sentences, judgments, rulings and orders.

Appeals may lie against interlocutory orders or ruling in both civil and criminal proceedings.

Grounds of appeal

[refer to handout]

10.12 Appeal Against Conviction & Sentence

10.13 Conditions for Raising Objections During the Hearing of Appeals

10.14 Outcome of the Appeal

1. Appeal allowed
2. Appeal dismissed [doesn't necessarily mean the respondent won]
3. Appeal struck out i.e. where the appeal ends not on the merits of the case but on a technicality. In this case the party can always come back

10.15 Appeals and Judicial Review

March 4, 2014

EVIDENCE IN REVIEW PROCEEDINGS

The courts are vested with special jurisdiction to vary or alter their decisions.

The review jurisdiction of the courts is a creature of statute – *Samanpa v Ampofo* [1992] 1 GLR 456, CA

Review courts

- SC
- HC
- CC
- DC
- Judicial committees of chieftaincy institutions

The CA and RT have no review jurisdiction.

Time for Review

Reviews are controlled by time.

Darke IX v Darke IV [1984-86] 1 GLR 481, SC [see holding 2] applications for leave to apply for review under s3(2) of NRCD 101 were governed by rule 7(1) of the SC Rules, 1970 (CI 13) and the time limit was within 14 days from the date of the decision...

Authorised Person to Apply for Review

A stranger to the case cannot apply for a review – *Akwei v Akwei* [1961] GLR 212.

Reviews by the DC

CI 59, Or.29 r1

Time for review is 14 days but there's provision for application within 30 days.

A magistrate can review only his own decision.

A review must be on application and not suo motu⁶⁴ – *Micah v Bruce* [1971] 1 GLR 153

The application for review must be on notice to the other parties to the action.

⁶⁴ unless the decision is void

Reviews by Judicial Committees

The JC rules don't contain review powers. In the case of *Otu X v Owuodzi* [1987-88] 1 GLR 196 the SC found that the Chieftaincy (National and Regional House of Chiefs) Procedure Rules, 1972 (CI 27) which governs the practice and procedure before the judicial committees of the houses of chiefs require them, in rule 28, to have regard to the principles of customary law and also to the practice and procedure of the HC. Consequently, as the HC rules can be resorted to and the HC has review powers, the JC logically has review powers.

Act 759, s35(2) provides that judicial committees of traditional councils have power to apply the rules of regional house of chiefs. Since regional house of chiefs have review powers, traditional councils also have review powers. See *Samanpa v Ampofo* [1992] 1 GLR 456

Reviews by HC

Or.42 of CI 47

Review not allowed suo motu not allowed – *In re Johnson (decd): Donkor v Prempeh* [1975] 2 GLR 182, CA

Review suo motu may be allowed when judgment is void – *Otu v Owuodzi*.

Grounds for review

Or.42 r 1 of CI 47

- Discovery of new matters or evidence
- Discovery of important matters or evidence
- Discovery of mistake or error apparent on the face of the record
- None of the above could be produces when the judgment was given after the exercise of due diligence
- Any other sufficient reason

Application based on misapprehension of the law

Can't make an application for review based on misapprehension of the law [cuz the law is in the bosom of the judge]

See

Ampofo Bros v Brong-Ahafo Corp Ltd & Ano [1961] GLR 62

Application based on new matter or evidence
Similar to CI 16, r54A

Error on the face of the record
The mistake should be patent on the face of the record and not based on detailed research.

Substantial miscarriage of justice

Review by CA

CI 19, r34

- Where circumstances of the case are exceptional, the CA may review any judgment it's delivered.
- This is however provided by an LI and not an Act so it's not a constitutional provision
 - o No procedure provided for the review e.g. time limit
- Quare
- The LI alone is not enough, thus CA has no review powers

Review in the SC

In **Mechanical Lloyd v Nartey** [1987-88] 2 GLR 598, SC held that review jurisdiction of the SC is a special jurisdiction to be exercised at the discretion of the court in exceptional circumstances where a fundamental and basic error might have inadvertently been committed by the court resulting in grave miscarriage of justice.

Fosuhene v Poma [1987-88] 2 GLR 195 gives explanation on the generis of the review jurisdiction of the SC.

Practice Direction [1987-88] 2 GLR 274

Application for review shall be within 14 days of the delivery of the judgment and by way of motion in writing specifying the grounds of review. Respondent shall file an answer within 14 days if he thinks fit. No application for extension of time will be entertained. The sole ground for review is that the circumstances are exceptional and in the interest of justice there should be a review. **Bisi v Kwayie** [

Decisions on reviews of old rules applicable to reviews under 1992 Constitution – **Pianim v Ekwam** [1996-97] SCGLR 431

Art. 133 provides that the SC may review its decisions on such grounds and subject to such conditions as may be prescribed by the rules.

The SC is bound by its previous decisions even if it's in principle only – Art. 129(3)

CI 16 r54a

Exceptional circumstances

GIHOC Refrigeration v Hanna Assi (No.1) [2007-2008] SCGLR 1
Mechanical Lloyd v Nartey in holding 1
Nasali v Addy [1987-88] 2 GLR 286

Summary

- Proof of fundamental or basic error of law
- Proof of fundamental or basic error of fact
- Exceptional circumstances which must have resulted in miscarriage of justice
- Conviction by the review court that the interest of justice necessitates the review
- Necessity to avoid irredeemable harm by review
- A decision had been given which was per incuria of a binding case law, statute or fundamental principle of practice or procedure
- Decision failed to consider the specific relief for which evidence or arguments had been advanced
- Misconstruction of law which would deprive the court of jurisdiction

Meaning of exceptional circumstances

Afranie v Quarcoo [1992] 2 GLR 561, SC “although what exactly constituted exceptional circumstances had not been spelt out, on the authorities the court had found exceptional circumstances...”

Disturbing trial court findings without stating reasons

Swaniker v Adotei Twi II [1966] GLR 151, SC
 o Attempts at reopening the case for re-hearing
Mechanical Lloyd v Nartey
Fosuhene v Pomaa [1987-88] 2 GLR 105 (holding 5), SC
Darbah v Ampah [1989-90] 2 GLR 103, SC
Ribeiro v Ribeiro (no.2) [1989-90] 2 GLR 130
Koglex v Attieh [2001-2002] SCGLR 94

Attempts to re-argue the case with more emphasis

Quartey v Central Services [1996-97] SCGLR 398

Review based on allegation that first appellate court ignored relevant authorities

Fosuhene v Pomaa

Nasali v Addy

Review based

Agyekum & Alhassan v Amadu [2000] SCGLR 60